U.S. Department of Transportation Office of
the Secretary of Transportation 1200 New
Jersey Ave, SE
Washington DC 20590

February 4, 2026

Attn: Potential Offerors

Subject: **Request for Proposal – RFP# 693JK426R600002**

The U.S. Department of Transportation Office of Aviation Analysis (OAA) is seeking a Contractor to provide Airline Analysis and Scheduling Solution via a web-based application tool in accordance with the attached Statement of Work.

This is a COMBINED SYNOPSIS/SOLICITATION for commercial items prepared in accordance with the format in FAR Subpart 12.6, as supplemented with additional information included in this notice. This announcement constitutes the only solicitation; proposal is being requested and a written solicitation will not be issued. Interested parties are responsible for monitoring this site to ensure they have the most current information in reference to this acquisition.

This requirement will be awarded as a commercial item under the procedures outlined in FAR Part 12. The North American Industrial Classification System (NAICS) code for this procurement is 541511, "Custom Computer Programming Services," with a small business size standard of $34.0 Million.

The DOT anticipates the award of a Firm Fixed Price (FFP) contract from this RFP. The resultant award shall consist of five years: one (1) base period and four (4) one year option periods.

This acquisition is a Full and Open Competition. The basis for award is "Best Value." The NAICS Code 541511- Custom Computer Programming Services.

DOT invites your company to submit a proposal in accordance with your established rates for the above support Services.

Please submit questions by Tuesday, February 10, 2026, at noon EST. Proposal submissions are due no later than Thursday, March 27, 2026, at 10 AM EST via email to Melinda.Riddick@dot.gov with a cc copy to Robin.Golden@dot.gov. Please submit questions and proposals to the aforementioned email addresses. **NOTE:** ***Offeror must provide a demonstration of the solution made available to DOT personnel prior to submitting a proposal. Offerors must schedule a demonstration by 12pm EST on or before March 2, 2026, Offerors must send an email to the above email addresses with available times between 10am and 2:30pm EST M-F for an online presentation via M.S. Teams or Zoom***

Please reference: "**RFP: 693JK426R600002** (Airline Analysis and Scheduling Solution Application) in the subject line when responding to this solicitation.

Thank you in advance for your interest in the Department of Transportation and its Programs.

Sincerely,

Melinda Riddick
Contracting Officer
Office of the Senior Procurement Executive

1. CONTRACT PRICING

(Table with negotiated per year prices will be inserted upon award)

The Period of Performance (POP) for this contract service shall be 12-months from award date, for the Base Year, followed by four (4) one-year Option Years. The effective or start date and termination date for this contract's Period of Performance shall be specified in the contract award.

Base Year:

	Description of Services	Qty	Unit Price	Number of Hours	Extended Price
1	Task 1 – Software and Application				
2	Task 2- Provider Travel-Training-only if needed				
BASE YEAR	**Base Total Cost**				
	Description of Services	Qty	Unit Price	Number of Hours	Extended Price
1	Task 1 – Software and Application				
2	Task 2- Provider Travel-Training-only if needed				
Option Year 1	**Option Year 1 Total Cost**				
	Description of Services	Qty	Unit Price	Number of Hours	Extended Price
1	Task 1 – Software and Application				
2	Task 2- Provider Travel-Training-only if needed				
Option Year 2	**Option Year 2 Total Cost**				

	Description of Services	Qty	Unit Price	Number of Hours	Extended Price
1	Task 1 – Software and Application				
2	Task 2- Provider Travel-Training-only if needed				
Option Year 3	**Option Year 3 Total Cost**				
	Description of Services	Qty	Unit Price	Number of Hours	Extended Price
1	Task 1 – Software and Application				
2	Task 2- Provider Travel-Training-only if needed				
Option Year 4	**Option Year 4 Total Cost**				
	TOTAL FIRM FIXED PRICE				$

Period of Performance	**Contract Total**
Base Year	$0.00
Option Year One (1)	$0.00
Option Year Two (2)	$0.00
Option Year Three (3)	$0.00
Option Year Four (4)	$0.00
Grand Total	**$0.00**

Note: Note: Offerors shall not include the overtime (OT) price in the total price. The overtime Price and Hours are subject to COR approval.

2. STATEMENT OF WORK

2.1 INTRODUCTION

The U.S. Department of Transportation Office of Aviation Analysis (OAA) has a statutory responsibility to analyze, using global airline schedule, air fare, and market demand data, the economic impact of current and proposed domestic and international aviation policies, the review of economic transactions among airlines, and to support DOT route selection proceedings. In order to properly analyze these

impacts, OAA must have access to global (international) aviation market demand data for individual city-pairs, as well as continuously updated advanced schedule data. The demand data must include price and traffic flow information in order to establish potential harms and benefits that could result from the approval or disapproval of a policy or transaction. Access to these large data sets must be provided by a robust user interface (UI) with a variety of functions for up to 10 analysts.

2.2 SCOPE

The Department seeks a data solution that will complement information available in the DOT-produced DB1B, and OAG Schedule sets. While these datasets provide some of the information the Department needs, they do not include full information on airfare, demand, and schedule and capacity, including fleet information by aircraft and flight. DOT-collected sources only provide fare and demand data for domestic and a limited set of U.S.-international itineraries. These sources do not offer comprehensive U.S.–international or international–international market data for all airlines—information that is critical for the OAA to conduct complete, statutorily required and ad-hoc analyses of critical aviation markets. These analyses support a range of functions, including managing traffic restrictions during pandemics and wars, conducting strategic assessments for bilateral and multilateral air service agreements, and evaluating airline alliances and merger proposals. Commercially available products provide essential complementary data to fill the critical gaps in the data collected by the DOT.

Uses: OAA staff will use the data from this tool for the following statutorily required and mission critical activities:

1) Evaluating airline transactions, such as applications for Antitrust Immunity (ATI) between U.S. and foreign carriers. Per 49 U.S.C 41309, staff must analyze the extent to which providing ATI to a joint venture between a U.S. airline and its foreign partner is anticompetitive. The tool will enable users to access both pre- and custom-designed business intelligence reports accessing all the data defined below, thereby enabling analysts to determine market competitiveness. Analysts utilize the following inputs to evaluate the competitive implications of allowing a U.S. airline and its foreign partner to achieve merger-like synergies in the relevant U.S. to foreign market:

a. Market sizes for U.S. domestic, U.S.-foreign, and foreign-foreign markets at country, regional, as well as city/airport pair levels.

b. Fares, by service class, for U.S. domestic, U.S.- foreign, and foreign- foreign markets at country, regional, as well as city/airport pair levels in which fares for all markets are similarly obtained and can be compared with each other for competitive analysis.

c. Traffic shares by airline: Evaluate market share (how much each traffic each airline in a given market carries as a percentage of the total) at regional, country pair, and city/ airport pair levels buy airline.

d. Capacity/Seats (aircraft type) operated in each individual market, i.e. the number of seats on aircraft on a market-by-market basis by Service Class.

e. Capacity and demand by Onboard Service Class offered.

f. Advance bookings information, allowing analysts to understand how demand is taking shape across domestic and global markets. Forward looking data through advanced booking information provides insights to assess the credibility of ATI and route selection applications. Such applications are often supported by market projections based on leading market indicators. Advance booking information will also provide the Office of the Secretary the most current pulse of the economic health of the aviation industry.

g. Fair Share/ QSI information, allowing analysts to understand how much share airlines should naturally earn based on schedule and capacity in all markets.

2) Merger Evaluations: OAA supports the DOJ-led merger analysis by identifying the effects of carrier consolidation on country-level, regional-level, and city and airport-level markets both domestically and internationally.

3) Carrier selection decisions: OAA supports Department efforts to award new slot pairs at slot constrained airports, as well as international route selection proceedings in markets where route authorities are limited. Analysts use market share information, schedule information, and fare information in the tool and provide decision makers with recommended selection options in line with the accompanying selection criteria.

4) Ad-hoc analyses of aviation industry trends: Analysts regularly provide decision makers up to the Secretary with as-needed industry analysis. The tool will provide comprehensive data necessary for these analyses that eclipses the types of market data available only through Department resources.

3. DESCRIPTION/TECHNICAL APPROACH

Data requirements for the elements and purposes outlined above:

1. Global origination and destination (OD) data, fare data, service class information, fair share/QSI data, and local and flow data by route and carrier.
2. Global schedule data by airline: historical, current, and future schedule information for global carriers that includes flight level granularity: flight number, arrival and departure times, aircraft type, number of seats on aircraft on a market-by-market basis.
3. Current and historical fleet information per airline (i.e., a fleet database), with capacity and cabin configuration; also includes seat capacity and cabin class by aircraft and flight.
4. Advanced booking data by market and airline. The advanced booking data should be derived from airline industry sources, such as airlines, global distribution systems (GDS), or screen scraping providers.
5. Data should be available going back to at least 2005, if not further, and include attribute data for airports and air carriers.

Data updates are also provided as a component of the annual contract. These data updates include:

- OAG, Innovata or comparable schedule product updates, minimum of weekly.
- Regular updates, as frequently as possible but prefer monthly, to the demand and fare file which includes the following elements/attributes: updated traffic, fare, load factor, booking, and on-time performance data.

User Requirements and support requirements: Solution must support a minimum of 10 users and provide a functionally robust user interface (UI) that will enable analysts to create output by, at minimum non-directional or directional, marketing carrier, operating carrier, or both, and aggregations by month, year, or quarter. Users should be able to make custom reports in addition to having access to pre-defined reports for easy and efficient access to information.

Access to the tool, the ability to run it and query the hosted data should be on a 24/7 basis.

Also to be included with the requirement is Customer Support Services, which shall include an online customer support website and/or telephone number.

User Training: The requirement shall include three days of new user or refresher training for up to 10 users, or three days of advanced user training for up to three users, each year as needed. Training shall take place in DOT's offices in Washington, DC, or if such training can successfully be accomplished virtually, by means of Zoom or Microsoft Teams. Scheduling of the training covered under this section requires a minimum of a 90-day notice and training dates must be mutually agreed upon.
This proposal is valid for 90 days from the date it is delivered to the US Department of Transportation.

A demonstration of the solution shall be made available by Offerors to DOT personnel and shall constitute a decisional criterial for selection of the contract award by the selection team.

4. DELIVERABLES AND PERIOD OF PERFORMANCE (POP)

Project Deliverables

Table 4-1. Deliverables and Target Dates for Funding under this Agreement

Task	Deliverable/Milestone/Activity	Target Completion Date
1	Software application and maintenance	April 30, 2026
2	Provider travel training-only if needed	April 30, 2026

Observance of Legal Holidays and Excused Absence

a. The Government hereby provides notice, and Contractor hereby acknowledges receipt that Government personnel observe the listed days as holidays:

Date	Holiday
January 1	New Year's Day
Third Monday in January	Birthday of Martin Luther King, Jr.
Third Monday in February	Washington's Birthday
Last Monday in May	Memorial Day
June 19	Juneteenth
July 4	Independence Day
First Monday in September	Labor Day
Second Monday in October	Columbus Day
November 11	Veterans Day
Fourth Thursday in November	Thanksgiving Day
December 25	Christmas Day
January 20 every four years	Inauguration Day

b. In addition to the days designated as holidays, the Government observes the following days:

Any other day designated by Federal Statute
Any other day designated by Executive Order
Any other day designated by the President's Proclamation

6. RESOURCE PLAN

The Contractor's resource plan for the total cost estimate of $_____, as provided in Section 1.0, is shown in Table 6-1. The initial funding provided for this work is $_____, and the remaining funding is anticipated to be provided through modifications.

Table 6-1, Contractor Resource Plan

Resource Category	Initial Funding	Anticipated Future Funding	Total Estimated Cost
Direct Labor			
Contracts			
Travel			
Other			
Total:			

7. AMENDMENTS

Adjustments or modifications to this SOW must be made by mutual consent of the parties, by the issuance of a written modification, signed and dated by all parties prior to any changes being performed or the end of the period of performance.

8. PERIOD OF PERFORMANCE

The Period of Performance (POP) for this contract service shall be 12-months from award date, for the Base Year, followed by four (4) one-year Option Years. The effective or start date and termination date for this contract's Period of Performance shall be specified in the contract award.

Approximate Dates:

Base Period: May 1, 2026, through April 30, 2027
Option Period One: May 1, 2027, through April 30, 2028
Option Period Two: May 1, 2028, through April 30, 2029
Option Period Three: May 1, 2029, through April 30, 2030
Option Period Four: May 1, 2030, through April 30, 2031

9. PLACE OF PERFORMANCE

Performance of on-site duties will take place in DOT Headquarters, 1200 New Jersey Avenue S.E. Washington D.C., unless otherwise directed.

10. INSPECTION AND ACCEPTANCE

FAR 52.252-2 CLAUSES INCORPORATED BY REFERENCE (FEB 1998)

The contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer shall make their full text available. Also, the full text of a clause may be accessed electronically at this address:

www.acquisition.gov/far

FAR 52.246-4 Inspection of Services Fixed Price (AUG 1996)

The Contracting Officer (CO), or his duly authorized representative, is authorized to perform inspection on behalf of the Government for acceptance of all services to be provided. In this regard, the Government Contracting Officer's Representative (COR) is an authorized technical representative of the Contracting Officer. Final acceptance of all services under this contract shall be made in writing by the COR designated in writing by the Contracting Officer.

The COR listed herein has been delegated authority to inspect and accept all services, reports and required deliverables or outputs for the contract.

On an ongoing basis, Government personnel shall conduct inspections of the Contractor's work, primarily utilizing the method identified under this contract.

Government inspection and acceptance of services, reports and other required deliverables or outputs shall take place at the Government's site identified in the Contract.

11. DELIVERIES OR PERFORMANCE

FAR 52.252-2 CLAUSES INCORPORATED BY REFERENCE (FEB 1998)

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer (CO) shall make their full text available. Also, the full text of a contract provision may be accessed electronically at this address:

www.acquisition.gov/far/

Federal Acquisition Regulation (FAR) Clauses:

CLAUSE		TITLE	DATE
X	52.242-15	Stop Work Order	AUG 1989
X	52.242-17	Government Delay of Work	APR 1984
X	52.247-35	F.O.B. Destination, Within Consignee's Premises	APR 1984

12. CONFLICT OF INTEREST

If for any reason, OST OAA personnel, or the contractor determines that a potential, perceived or real conflict of interest exists, the contract employee that is the source of the conflict shall cease all work.

13. CONFIDENTIALITY AND PRIVACY

All financial, statistical, personal, technical and other data and information relating to Departmental Office of Human Resource Management operations, and that are designated confidential by said organization (i.e., medical, personal and other information related to requests for reasonable accommodations for individuals with disabilities) and made available to the Contractor in order to carry out this Contract, or that becomes available to the Contractor in carrying out this contract, shall be protected by the Contractor from unauthorized use and disclosure through the observance of the same, or more effective procedural requirements, as are applicable to human resource operations. The Contractor shall not be required to keep confidential, any data or information which is or becomes publicly available, is already rightfully in the Contractor's possession, is independently developed by the Contractor outside the scope of this Contract or is rightfully obtained from third parties. Under certain circumstances, Contractor personnel may be required to sign Nondisclosure Agreements (such as the example shown in Attachment 1) or similar commitments specific to a given program or event.

14. SAFEGUARD OF PERSONALLY IDENTIFIABLE INFORMATION

The contractor must protect the privacy of the individuals whose data is entered into the Federal Personnel Payroll System in accordance with the Privacy Act of 1974 (5 USC 552). It meets the requirements of National Institute of Standards and Technology (NIST) Federal Information Processing Standards Publication (FIPS) 200, Minimum Security Requirements for Federal Information and Information Systems. The contractor must further agree to follow the requirements found in DOT Information Technology and Information Assurance Policy 034, Reporting Cyber Security Incidents and Sensitive Personally Identifiable Information Exposures for the U.S. Department of Transportation.

15. CONTACTS

15.1 CONTRACTING OFFICER (CO)

The Contracting Officer is the only individual who can legally commit or obligate the Government for the expenditure of public funds. Only the Contracting Officer has authority to: (1) increase or decrease the award amount; (2) direct or negotiate any changes; (3) modify or extend the period of performance; (4) change the schedule of completion; (5) authorize payment under this PO; and (6) otherwise modify any terms or conditions of this Order.

The following individual (s) will be the Government's points of contact during the performance of this contract:

Contracting Officer:
TBD

Contact Specialist:
TBD

15.2 CONTRACTING OFFICER REPRESENTATIVE (COR)

1252.242-73 CONTRACTING OFFICER'S REPRESENTATIVE (OCT 1994)

(a) The Contracting Officer may designate Government personnel to act as the Contracting Officer's Representative (COR) to perform functions under the contract such as review and/or inspection and acceptance of supplies, services, including construction, and other functions of a technical nature. The Contracting Officer will provide a written notice of such designation to the Contractor within five working days after contract award or for construction, not less than five working days prior to giving the contractor the notice to proceed. The designation letter will set forth the authorities and limitations of the COR under the contract.

(b) The Contracting Officer cannot authorize the COR or any other representative to sign documents (i.e., contracts, contract modifications, etc.) that require the signature of the Contracting Officer.
The COR is not authorized to change the scope of work or specifications as stated in this Contract, to make any commitments or otherwise obligate the Government, or to authorize any changes which affect the Contract price, task schedule, period of performance or other terms or conditions.
The Contracting Officer Representative during the performance of this contract is:

Name: TBD

The COR has the responsibility to inspect all deliverables and services and authorization to certify (but not to reject or deny) invoices for payment. The authority to reject an invoice or assess deductions on an invoice is expressly reserved for the Contracting Officer. The Contracting Officer is the only individual who can legally commit or obligate the Government for the expenditure of public funds. The technical administration of this contract shall not be construed to authorize the revision of the terms and conditions of this contract. Any such revision shall be authorized in writing by the Contracting Officer.

16. KEY PERSONNEL

The contractor shall provide and maintain in the spaces below, the names and phone numbers of key personnel that shall perform under the terms of the contract. These personnel shall be reachable by phone twenty-four hours a day. When contractor's first available key personnel selection becomes unavailable to render services, the contract is responsible for providing a back-up with equal or greater knowledge and experience as identified in the contract.

All onsite employees will sign Non-disclosure Agreement (See Attachment 1).

The personnel and/or facilities as specified below are considered essential to the work being performed hereunder and may, with the consent of the contracting parties, be changed from time to time during the course of the contract by adding or deleting personnel, labor categories, and/or facilities, as appropriate.

Prior to removing, replacing, or diverting any of the specified individuals or facilities, the Contractor shall notify in writing, and receive consent from, the Contracting Officer reasonably in advance of the action and shall submit justification (including proposed substitutions) in sufficient detail to permit evaluation of the impact on this contract.

The Contractor shall not remove, replace, or divert any key personnel and/or facilities without obtaining the prior written consent of the Contracting Officer. The Contracting Officer may ratify in writing the change, and such ratification shall constitute the consent of the Contracting Officer required by this clause.

16.1. TAR 1252.215-70 KEY PERSONNEL AND/OR FACILITIES (OCT 1994)

The personnel and/or facilities as specified in paragraph (c) are considered essential to the work being performed hereunder and may, with the consent of the contracting parties, be changed from time to time during the course of the contract by adding or deleting personnel and/or facilities, as appropriate. Prior to removing, replacing, or diverting any of the specified individuals or facilities, the Contractor shall notify, in writing, and receive consent from, the Contracting Officer reasonably in advance of the action and shall submit justification (including proposed substitutions) in sufficient detail to permit evaluation of the impact on this contract. No diversion shall be made by the Contractor without the written consent of the Contracting Officer. The Contracting Officer may ratify, in writing, the change and such ratification shall constitute the consent of the Contracting Officer required by this clause. The Key Personnel under this Contract are:

Name	Title
TBD	TBD

16.2 ACCEPTANCE OF KEY PERSONNEL - SUBSTITUTION/REPLACEMENT

In evaluating the justification and proposed substitution(s) of key personnel throughout the period of performance of this contract, the Contracting Officer reserves the right to make an assessment of the technical and/or professional qualifications of the proposed substituting individual(s). The Contracting Officer further reserves the right to disallow the utilization of the proposed substituting individual(s) for performance of the subject contract, when the technical and/or professional qualifications of the proposed individuals are determined, by the Contracting Officer, (1) not to be substantially equivalent to the technical and/or professional qualifications of the key personnel they are to substitute, or (2) not sufficient to reasonably insure successful performance or otherwise endanger project performance, progressions, or completion.

17. CONTRCTOR STAFF QUALIFICATIONS

The contractor should structure staff in a manner that is the most efficient to ensure quality products and services are delivered and contain expertise in their product. The contractor shall include the qualifications of staff assigned to the offering. This includes years of a minimum of five (5) years' experience gathering, compiling and analyzing data and software, congruent certifications held and minimum Bachelor's Degree.

18. CONFIDENTIALITY AND PRIVACY

All financial, statistical, personal, technical and other data and information relating to Departmental Office of Human Resource Management operations, and that are designated confidential by said

organization (i.e., medical, personal and other information related to requests for reasonable accommodations for individuals with disabilities) and made available to the Contractor in order to carry out this Contract, or that becomes available to the Contractor in carrying out this contract, shall be protected by the Contractor from unauthorized use and disclosure through the observance of the same, or more effective procedural requirements, as are applicable to human resource operations. The Contractor shall not be required to keep confidential, any data or information which is or becomes publicly available, is already rightfully in the Contractor's possession, is independently developed by the Contractor outside the scope of this Contract or is rightfully obtained from third parties. Under certain circumstances, Contractor personnel may be required to sign Nondisclosure Agreements (such as the example shown in Attachment 1) or similar commitments specific to a given program or event.

19. SAFEGUARD OF PERSONALLY IDENTIFIABLE INFORMATION

The contractor must protect the privacy of the individuals whose data is entered into the Federal Personnel Payroll System in accordance with the Privacy Act of 1974 (5 USC 552). It meets the requirements of National Institute of Standards and Technology (NIST) Federal Information Processing Standards Publication (FIPS) 200, Minimum Security Requirements for Federal Information and Information Systems. The contractor must further agree to follow the requirements found in DOT Information Technology and Information Assurance Policy 034, Reporting Cyber Security Incidents and Sensitive Personally Identifiable Information Exposures for the U.S. Department of Transportation.

20. TECHNICAL INSTRUCTIONS

The performance of all contract work is subject to the technical instructions given by the DOT Contracting Officer Technical Representative. These instructions will consist of available assumptions, general guidance, supplemental details affecting projects, coordination issues/requirements, and liaison matters involving DOT's agencies. Cooperation with the DOT personnel are of paramount importance in performing Task Order work.

21. TECHNICAL DIRECTION

The COR is not authorized to make any commitments or changes which constitute work not within the general scope of the resultant contract, or change the expressed terms and conditions incorporated into the contract, or which constitute a basis for increase in the contract amount or extension of the contract performance period. The COR may provide technical direction on contract performance. As used. herein technical direction is direction to the Contractor, which confirms the results of meetings, fills in details, requires pursuit of certain lines of inquiry, or otherwise serves to accomplish the contract SOW. Technical direction shall be issued in writing by the COR or confirmed by him/her in writing within five (5) calendar days after verbal issuance.

The Contractor shall express its concurrence that any such technical direction is entirely within the scope of this contract and consistent with this provision by endorsing the written direction of the work so directed.

If the Contractor should, during the course of the contract, interpret any advice or comments from the Contracting Officer's Representative as constituting additions or revisions to the scope of the resultant

contract, he/ she shall immediately notify the Contracting Officer so as to obtain official confirmation and refrain from performing any work from such advice or comments until confirmed by the Contracting Officer.

Assure that the Contractor performs the technical requirements of the contract in accordance with the contract terms, conditions, and specifications. Perform or cause to be performed, inspections necessary in connection with a) above and require the Contractor to correct all deficiencies; perform acceptance for the Government.

Maintain all liaison and direct communications with the Contractor's task order manager. Written communications with the Contractor and documents shall be signed as Contracting Officer's Representative with a copy furnished to the Contracting Officer.

Issue written interpretations of technical requirements of Government drawings, designs, and specifications.

Monitor the Contractor's production or performance progress and notify the Contractor in writing of deficiencies observed during surveillance, and direct appropriate action for corrections. Record and report to the Contracting Officer incidents of faulty or nonconforming work, delays or problems.

Obtain necessary security clearance and appropriate identification if access to Government facilities is required. If required, ensure that Government furnished property is available when required.

22. UNAUTHORIZED COMMITMENT

The Government program manager or any other client representative is not authorized to change any of the terms and conditions of the resultant task order. Changes, if any, shall be made by the Contracting Officer only.

23. CONTRACTOR POINT OF CONTACT

The following individual authorized to communicate with the Government on behalf of the Contractor company:

Name:
Title:
Number:
email address

The contractor's representative shall be responsible for all contract administration issues and shall act as the central point of contact with the Government for all such issues. The representative shall have full authority to act for the contractor in all contractual matters. The representative shall be able to fluently read, write, and speak the English language.

24. ELECTRONIC SUBMISSION OF PAYMENT REQUESTS

(a) Definitions. As used in this clause -

(1) Contract financing payment has the meaning given in FAR 32.001.

(2) Payment request means a bill, voucher, invoice, or request for contract financing payment or invoice payment with associated supporting documentation. The payment request must comply with the requirements identified in FAR 32.905(b), "Content of Invoices," this clause, and the applicable Payment clause included in this contract.

(3) Electronic form means an automated system transmitting information electronically according to the accepted electronic data transmission methods and formats identified in paragraph (c) of this clause. Facsimile, email, and scanned documents are not acceptable electronic forms for submission of payment requests.

(4) Invoice payment has the meaning given in FAR 32.001.

(b) ELECTRONIC PAYMENT REQUESTS. Except as provided in paragraph (e) of this clause, the contractor shall submit payment requests in electronic form. Purchases paid with a Governmentwide commercial purchase card are considered to be an electronic transaction for purposes of this rule, and therefore no additional electronic invoice submission is required.

(c) The Department of Transportation utilizes the Delphi eInvoicing web-portal for processing invoices. For vendors submitting invoices, and certain grantees submitting payment requests, they will be required to submit invoices to OST electronically via the Delphi eInvoicing web-portal which is accessed via https://einvoice.esc.gov, and is authenticated via www.login.gov. All persons accessing the Delphi eInvoicing web-portal will be required to have their own unique user Delphi eInvoicing ID and be credentialed through login.gov. See www.login.gov for instructions.

(d) In order to receive payment and in accordance with the Prompt Payment Act, all invoices submitted as attachments in the Delphi eInvoicing web-portal shall contain the following:
(1) Invoice number and invoice date.
(2) Period of performance covered by invoice.
(3) Contract number and title.
(4) Task/Delivery Order number and title (if applicable).
(5) Amount billed (by CLIN), current and cumulative.
(6) Total ($) of billing.
(7) Cumulative total billed for all contract work to date.
(8) Name, title, phone number, and mailing address of person to be contacted in the event of a defective invoice.

If the contract includes allowances for travel, all invoices which include charges pertaining to travel expenses will catalog a breakdown of reimbursable expenses with the appropriate receipts to substantiate the travel expenses.

(e) PAYMENT SYSTEM REGISTRATION. All persons accessing the Delphi eInvoicing web-portal will be required to have their own unique user Delphi eInvoicing ID and password and be credentialed through login.gov.

(1) ELECTRONIC AUTHENTICATION. See www.login.gov for instructions. Click on the following link for instructions on establishing a login.gov account: https://login.gov/help/.

(2) To create a login.gov account, the user will need a valid email address and a working phone number. The user will create a password and then login.gov will reply with an email confirming the email address.

(3) Agency POC's will be responsible for communicating with vendor POC's to initiate the Delphi eInvoicing account creation process. Vendor POC's who will require access to the eInvoicing web-portal for invoice submission and payment tracking purposes will be required to provide their full name, valid email address, and current phone number to the agency POC to initiate the Delphi eInvoicing web-portal account. Vendor users and the agency POC will be notified via e-mail when the account is created. The vendor user will be provided detailed instructions for logging into their Delphi eInvoicing account.

The OST POC is:

Omarr Lee
Omarr.Lee@dot.gov
(202) 366-0475

If the Vendor has any general questions or issues accessing the iSupplier web-portal, please have them contact the ESC iSupplier helpdesk either at:

1. https://einvoice.esc.gov/

2. Call Delphi helpdesk at 1-866-641-3500, option #4, then option #3

(4) Training on Delphi. To facilitate use of DELPHI, comprehensive user information is available at http://einvoice.esc.gov

(5) ACCOUNT MANAGEMENT. Vendors are responsible to contact the Delphi Help Desk when their firm's points of contacts will no longer be submitting invoices so they can be removed from the system. Instructions for contacting the Delphi Help Desk can be found at http://einvoice.esc.gov

OST vendors shall submit invoices to OST electronically via the Delphi eInvoicing web-portal. To initiate this process, you are requested to provide OST with information (company name, contract/task order number/purchase order (PO) number, and up to two Point of Contact (POC) full names and their email addresses) as shown on the table below.

Company Name	Contract #/ Task Order #	Primary POC First Name	Primary POC Last Name	Primary POC email	Secondary POC First Name	Secondary POC Last Name	Secondary POC email

Email the above information to the following email address: Omarr.Lee@dot.gov

Please note that the POCs you provide are the individuals you authorize to submit invoices to OST on behalf of your company. Your POCs will then receive a welcome letter from Delphi eInvoicing processing center with instructions on creating a Login.gov user account. This account can then be used to access the eInvoicing web-portal at http://einvoice.esc.gov .

The Vendor shall contact their COR when POCs leave their organization or will no longer be submitting invoices, with the full name, title, phone number, e-mail address, and user ID of the POC. The user ID will then be removed. If a user ID becomes inactive/times out due no activity by the POC, the Vendor shall contact their COR with the full name, title, phone number, e-mail address, and user ID of the POC to be reactivated. To prevent being timed out due to no-activity, users should login once within 45 days of their last login.

25. WAIVERS

The Department of Transportation Financial Management officials may, on a case-by-case basis, waive the requirement to register and use the DELPHI eInvoicing System. Waiver request forms can be obtained on the DELPHI eInvoicing website (http://www.dot.gov/cfo/delphi-einvoicing-system.html) or by contacting the COR. All Vendors must explain why they are unable to use or access the Internet to register and enter payment requests.

All waiver requests shall be sent via mail to:

Director of the Office of Financial Management
US Department of Transportation, B-30
Office of Financial Management, Room W93-431
1200 New Jersey Avenue SE
Washington DC 20590-0001
or electronically to: DOTeInvoicing@dot.gov

The Director of the DOT Office of Financial Management will confirm or deny the request within approximately 30 days.

If a Vendor is granted a Waiver, Requests for Advance or Reimbursement and required supporting documents, shall be sent via regular U.S. Postal Service to the following address:

MMAC
OST/AMZ-160
6500 MacArthur Blvd.
Oklahoma City, OK 73169
Attention: (Accounting Technician) and (Contract Specialist)

Express Delivery Point of Contact: Lead Account Technician, 405-954-8252

All invoices, regardless of submission method, must identify the COR as the primary invoicing point of contact

Authorization of invoice payments shall be made after approval of ROI by COR or designated DOCR official. All invoices must contain the correct contract number and correct extended modification number, if any (a modification number is an extended number added to the contract number when a contract has been amended).

Prepare an individual invoice for each EEO complaint investigated. If an investigation complaint has been consolidated, include all information on one invoice.

Partial Payment: If an EEO complaint assigned for an investigation is terminated through no fault of the Contractor, payment for the investigation will be a prorated amount equal to the percentage of work completed by the Contractor.

A percentage payment guideline has been established to determine the amount of payment due for work completed by the Contractor. The Contractor may bill the agency up to these percentages for work conducted up to the various stages of the investigation. Please note that these are "Not to Exceed (NTE)" amounts and require specific justification for any amount billed. If the EEO complaint is withdrawn or settled by the complainant prior to the completion of the investigation by the Contractor, payment for the investigation will be prorated based on the "Partial Payment Guidelines" specified below.

26. CONTRACT CLAUSES

26.1 FAR 2.252-2 CLAUSES INCORPORATED BY REFERENCE (FEB 1998)

The contract incorporates the following clauses (as indicated by an "X") by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make the full text available. Also, the full text of a clause may be accessed electronically at this/these address (es): www.acquisition.gov/far.

Applicable "X"	FAR Clause Number	FAR Clause Title (Thru FAC 2023-02)
X	52.202-1	Definitions (JUN 2020)
X	52.203-3	Gratuites (APR 1984)
X	52.203-5	Covenant Against Contingent Fees (MAY 2014)
X	52.203-6	Restrictions on Subcontractor Sales to the Government (JUN 2020)
X	52.203-7	Anti-Kickback Procedures (JUN 2020)
X	52.203-8	Cancellation, Rescission, and Recovery of Funds for Illegal or Improper Activity (MAY 2014)
X	52.203-12	Limitation on Payments to Influence Certain Federal Transactions (JUN 2020)
X	52.203-13	Contractor Code of Business Ethics and Conduct (NOV 2021)

Applicable "X"	FAR Clause Number	FAR Clause Title (Thru FAC 2023-02)
X	52.203-14	Display of Hotline Posters (NOV 2021)
X	52.203-17	Contractor Employee Whistleblower Rights and Requirement to Inform Employees of Whistleblower Rights (JUN 2023)
X	52.204-4	Printed or Copied Double-Sided on Postconsumer Fiber Content Paper (MAY 2011)
X	52.204-9	Personal Identity Verification of Contractor Personnel (JAN 2011)
X	52.204-13	System for Award Management Maintenance (OCT 2018)
X	52.204-19	Incorporation by Reference of Representations and Certifications (DEC 2014)
X	52.204-23	Prohibition on Contracting for Hardware, Software, and Services Developed or Provided by Kaspersky Lab and Other Covered Entities (DEC 2023)
X	52.209-6	Protecting the Government's Interest When Subcontracting with Contractors Debarred, Suspended, or Proposed for Debarment (NOV 2021)
X	52.209-9	Updates of Publicly Available Information Regarding Responsibility Matters (OCT 2018)
X	52.212-4	Contract Terms and Conditions-Commercial Items (NOV 2023)
X	52.212-5	Contract Terms and Conditions Required To Implement Statutes or Executive Orders—Commercial Products and Commercial Services (Oct 2025)
X	52.215-2	Audit and Records—Negotiation (JUN 2020)
X	52.215-8	Order of Precedence – Uniform Contract Format (OCT 1997)
X	52.215-19	Notification of Ownership Changes (OCT 1997)
X	52.215-23	Limitations on Pass through charges (JUN 2020)
X	52.219-8	Utilization of Small Business Concerns (FEB 2024)
X	52.222-2	Payment for Overtime Premiums (JUL 1990)
X	52.222-3	Convict Labor (JUN 2003)
X	52.222-21	Prohibition of Segregated Facilities (APR 2015)
X	52.222-26	Equal Opportunity (SEP 2016)
X	52.222-40	Notification of Employee Rights Under the National Labor Relations Act (DEC 2010)
X	52.222-41	Service Contract Labor Standards (AUG 2018)
X	52.222-50	Combating Trafficking in Persons (NOV 2021)
X	52.222-54	Employment Eligibility Verification (MAY 2022)

Applicable "X"	FAR Clause Number	FAR Clause Title (Thru FAC 2023-02)
X	52.223-6	Drug-Free Workplace (MAY 2001)
X	52.223-13	Patent Rights-Ownership by the Government (JUN 2014)
X	52.223-18	Encouraging Contractor Policies to Ban Text Messaging While Driving (JUN 2020)
X	52.225-13	Restrictions on Certain Foreign Purchases (FEB 2021)
X	52.232-7	Payments Under Time-and-Materials and Labor-Hour Contracts (NOV 2021)
X	52.232-9	Limitation on Withholding Payments (APR 1984)
X	52.232-17	Interest (MAY 2014)
X	52.232-18	Limitations of Funds (APR 1984)
X	52.232-23	Assignment of Claims (MAY 2014)
X	52.232-25	Prompt Payment (JAN 2017)
X	52.232-33	Payment by Electronic Funds Transfer - System for Award Management (OCT 2018)
X	52.232-39	Unenforceability of Unauthorized Obligations (JUN 2013)
X	52.232-40	Providing Accelerated Payments to Small Business (MAR 2023)
X	52.233-1	Disputes (May 2014) X Alternate I (DEC 1991)
X	52.233-3	Protest After Award (AUG 1996) X Alternate I (JUN 1985)
X	52.233-4	Applicable Law for Breach of Contract Claim (OCT 2004)
X	52.237-3	Continuity of Services (JAN 1991)
X	52.242-3	Penalties for Unallowable Costs (DEC 2022)
X	52.243-1	Changes- Fixed Price (AUG 1987)
X	52.246-23	Limitation of Liability (FEB 1997)
X	52.249-4	Termination for Convenience of the Government (Services) (Short Form) (APR 1984)
X	52.249-8	Default (Fixed-Price Supply and Service) (Apr 1984)

Please note: All Offerors and prospective contractors must be registered in the System for Award Management (SAM) with their Online Representations and Certifications Applications (ORCA) at https://www.sam.gov/ or must provide a completed copy of 52.212-3 with their quotation.

26.2 FEDERAL ACQUISITION REGULATION (FAR) CLAUSES PROVIDED IN FULL TEXT

This Contract incorporate the following Federal Acquisition Regulation Clauses provided in full text:

26.2.1 FAR 52.204-1 APPROVAL OF CONTRACT (DEC 1989)

This contract is subject to the written approval of the Contracting Officer, OST Office of Acquisition Services and shall not be binding until so approved.

(End of clause)

26.2.2 FAR 52.204-24 REPRESENTATION REGARDING CERTAIN TELECOMMUNICATIONS AND VIDEO SURVEILLANCE SERVICES OR EQUIPMENT.

REPRESENTATION REGARDING CERTAIN TELECOMMUNICATIONS AND VIDEO SURVEILLANCE SERVICES OR EQUIPMENT (NOV 2021)

The Offeror shall not complete the representation at paragraph (d)(1) of this provision if the Offeror has represented that it "does not provide covered telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument" in paragraph (c)(1) in the provision at 52.204-26, Covered Telecommunications Equipment or Services—Representation, or in paragraph (v)(2)(i) of the provision at 52.212-3, Offeror Representations and Certifications-Commercial Products or Commercial Services. The Offeror shall not complete the representation in paragraph (d)(2) of this provision if the Offeror has represented that it "does not use covered telecommunications equipment or services, or any equipment, system, or service that uses covered telecommunications equipment or services" in paragraph (c)(2) of the provision at 52.204-26, or in paragraph (v)(2)(ii) of the provision at 52.212-3.
(a) Definitions. As used in this provision—
Backhaul, covered telecommunications equipment or services, critical technology, interconnection arrangements, reasonable inquiry, roaming, and substantial or essential component have the meanings provided in the clause 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment.
(b) Prohibition. (1) Section 889(a)(1)(A) of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Pub. L. 115-232) prohibits the head of an executive agency on or after August 13, 2019, from procuring or obtaining, or extending or renewing a contract to procure or obtain, any equipment, system, or service that uses covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system. Nothing in the prohibition shall be construed to—

(i) Prohibit the head of an executive agency from procuring with an entity to provide a service that connects to the facilities of a third-party, such as backhaul, roaming, or interconnection arrangements; or

(ii) Cover telecommunications equipment that cannot route or redirect user data traffic or cannot permit visibility into any user data or packets that such equipment transmits or otherwise handles.

(2) Section 889(a)(1)(B) of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Pub. L. 115-232) prohibits the head of an executive agency on or after August 13, 2020, from entering into a contract or extending or renewing a contract with an entity that uses

any equipment, system, or service that uses covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system. This prohibition applies to the use of covered telecommunications equipment or services, regardless of whether that use is in performance of work under a Federal contract. Nothing in the prohibition shall be construed to—

(i) Prohibit the head of an executive agency from procuring with an entity to provide a service that connects to the facilities of a third-party, such as backhaul, roaming, or interconnection arrangements; or

(ii) Cover telecommunications equipment that cannot route or redirect user data traffic or cannot permit visibility into any user data or packets that such equipment transmits or otherwise handles.

(c) Procedures. The Offeror shall review the list of excluded parties in the System for Award Management (SAM) (https://www.sam.gov) for entities excluded from receiving federal awards for "covered telecommunications equipment or services".

(d) Representation. The Offeror represents that—

(1) It □ will, □ will not provide covered telecommunications equipment or services to the Government in the performance of any contract, subcontract or other contractual instrument resulting from this solicitation. The Offeror shall provide the additional disclosure information required at paragraph (e)(1) of this section if the Offeror responds "will" in paragraph (d)(1) of this section; and

(2) After conducting a reasonable inquiry, for purposes of this representation, the Offeror represents that—

It □ does, □ does not use covered telecommunications equipment or services, or use any equipment, system, or service that uses covered telecommunications equipment or services. The Offeror shall provide the additional disclosure information required at paragraph (e)(2) of this section if the Offeror responds "does" in paragraph (d)(2) of this section.

(e) Disclosures. (1) Disclosure for the representation in paragraph (d)(1) of this provision. If the Offeror has responded "will" in the representation in paragraph (d)(1) of this provision, the Offeror shall provide the following information as part of the offer:

(i) For covered equipment—

(A) The entity that produced the covered telecommunications equipment (include entity name, unique entity identifier, CAGE code, and whether the entity was the original equipment manufacturer (OEM) or a distributor, if known);

(B) A description of all covered telecommunications equipment offered (include brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); and

(C) Explanation of the proposed use of covered telecommunications equipment and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(1) of this provision.

(ii) For covered services—

(A) If the service is related to item maintenance: A description of all covered telecommunications services offered (include on the item being maintained: Brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); or

(B) If not associated with maintenance, the Product Service Code (PSC) of the service being provided; and explanation of the proposed use of covered telecommunications services and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(1) of this provision.

(2) Disclosure for the representation in paragraph (d)(2) of this provision. If the Offeror has responded "does" in the representation in paragraph (d)(2) of this provision, the Offeror shall provide the following information as part of the offer:

(i) For covered equipment—

(A) The entity that produced the covered telecommunications equipment (include entity name, unique entity identifier, CAGE code, and whether the entity was the OEM or a distributor, if known);

(B) A description of all covered telecommunications equipment offered (include brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); and

(C) Explanation of the proposed use of covered telecommunications equipment and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(2) of this provision.

(ii) For covered services—

(A) If the service is related to item maintenance: A description of all covered telecommunications services offered (include on the item being maintained: Brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); or

(B) If not associated with maintenance, the PSC of the service being provided; and explanation of the proposed use of covered telecommunications services and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(2) of this provision.

[End of Clause]

26.2.3 FAR 52.204-25 PROHIBITION ON CONTRACTING FOR CERTAIN TELECOMMUNICATIONS AND VIDEO SURVEILLANCE SERVICES OR EQUIPMENT.

PROHIBITION ON CONTRACTING FOR CERTAIN TELECOMMUNICATIONS AND VIDEO SURVEILLANCE SERVICES OR EQUIPMENT (NOV 2021)

(a) Definitions. As used in this clause—

Backhaul means intermediate links between the core network, or backbone network, and the small subnetworks at the edge of the network (e.g., connecting cell phones/towers to the core telephone network). Backhaul can be wireless (e.g., microwave) or wired (e.g., fiber optic, coaxial cable, Ethernet).

Covered foreign country means The People’s Republic of China.

Covered telecommunications equipment or services means–

(1) Telecommunications equipment produced by Huawei Technologies Company or ZTE Corporation (or any subsidiary or affiliate of such entities);

(2) For the purpose of public safety, security of Government facilities, physical security surveillance of critical infrastructure, and other national security purposes, video surveillance and telecommunications equipment produced by Hytera Communications Corporation, Hangzhou Hikvision Digital Technology Company, or Dahua Technology Company (or any subsidiary or affiliate of such entities);

(3) Telecommunications or video surveillance services provided by such entities or using such equipment; or

(4) Telecommunications or video surveillance equipment or services produced or provided by an entity that the Secretary of Defense, in consultation with the Director of National Intelligence or the Director of the Federal Bureau of Investigation, reasonably believes to be an entity owned or controlled by, or otherwise connected to, the government of a covered foreign country.

Critical technology means–

(1) Defense articles or defense services included on the United States Munitions List set forth in the International Traffic in Arms Regulations under subchapter M of chapter I of title 22, Code of Federal Regulations;

(2) Items included on the Commerce Control List set forth in Supplement No. 1 to part 774 of the Export Administration Regulations under subchapter C of chapter VII of title 15, Code of Federal Regulations, and controlled-

(i) Pursuant to multilateral regimes, including for reasons relating to national security, chemical and biological weapons proliferation, nuclear nonproliferation, or missile technology; or

(ii) For reasons relating to regional stability or surreptitious listening;

(3) Specially designed and prepared nuclear equipment, parts and components, materials, software, and technology covered by part 810 of title 10, Code of Federal Regulations (relating to assistance to foreign atomic energy activities);

(4) Nuclear facilities, equipment, and material covered by part 110 of title 10, Code of Federal Regulations (relating to export and import of nuclear equipment and material);

(5) Select agents and toxins covered by part 331 of title 7, Code of Federal Regulations, part 121 of title 9 of such Code, or part 73 of title 42 of such Code; or

(6) Emerging and foundational technologies controlled pursuant to section 1758 of the Export Control Reform Act of 2018 (50 U.S.C. 4817).

Interconnection arrangements means arrangements governing the physical connection of two or more networks to allow the use of another's network to hand off traffic where it is ultimately delivered (e.g., connection of a customer of telephone provider A to a customer of telephone company B) or sharing data and other information resources.

Reasonable inquiry means an inquiry designed to uncover any information in the entity's possession about the identity of the producer or provider of covered telecommunications equipment or services used by the entity that excludes the need to include an internal or third-party audit.

Roaming means cellular communications services (e.g., voice, video, data) received from a visited network when unable to connect to the facilities of the home network either because signal coverage is too weak or because traffic is too high.

Substantial or essential component means any component necessary for the proper function or performance of a piece of equipment, system, or service.

(b) Prohibition. (1) Section 889(a)(1)(A) of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Pub. L. 115-232) prohibits the head of an executive agency on or after August 13, 2019, from procuring or obtaining, or extending or renewing a contract to procure or obtain, any equipment, system, or service that uses covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system. The Contractor is prohibited from providing to the Government any equipment, system, or service that uses covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system, unless an exception at paragraph (c) of this clause applies or the covered telecommunication equipment or services are covered by a waiver described in FAR 4.2104.

(2) Section 889(a)(1)(B) of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Pub. L. 115-232) prohibits the head of an executive agency on or after August 13, 2020, from entering into a contract, or extending or renewing a contract, with an entity that uses any equipment, system, or service that uses covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system, unless an exception at paragraph (c) of this clause applies or the covered telecommunication equipment or services are covered by a waiver described in FAR 4.2104. This prohibition applies to the use of covered telecommunications equipment or services, regardless of whether that use is in performance of work under a Federal contract.

(c) Exceptions. This clause does not prohibit contractors from providing-

(1) A service that connects to the facilities of a third-party, such as backhaul, roaming, or interconnection arrangements; or

(2) Telecommunications equipment that cannot route or redirect user data traffic or permit visibility into any user data or packets that such equipment transmits or otherwise handles.

(d) Reporting requirement. (1) In the event the Contractor identifies covered telecommunications equipment or services used as a substantial or essential component of any system, or as critical technology as part of any system, during contract performance, or the Contractor is notified of such by a subcontractor at any tier or by any other source, the Contractor shall report the information in paragraph (d)(2) of this clause to the Contracting Officer, unless elsewhere in this contract are

established procedures for reporting the information; in the case of the Department of Defense, the Contractor shall report to the website at https://dibnet.dod.mil. For indefinite delivery contracts, the Contractor shall report to the Contracting Officer for the indefinite delivery contract and the Contracting Officer(s) for any affected order or, in the case of the Department of Defense, identify both the indefinite delivery contract and any affected orders in the report provided at https://dibnet.dod.mil.

(2) The Contractor shall report the following information pursuant to paragraph (d)(1) of this clause

(i) Within one business day from the date of such identification or notification: the contract number; the order number(s), if applicable; supplier name; supplier unique entity identifier (if known); supplier Commercial and Government Entity (CAGE) code (if known); brand; model number (original equipment manufacturer number, manufacturer part number, or wholesaler number); item description; and any readily available information about mitigation actions undertaken or recommended.

(ii) Within 10 business days of submitting the information in paragraph (d)(2)(i) of this clause: any further available information about mitigation actions undertaken or recommended. In addition, the Contractor shall describe the efforts it undertook to prevent use or submission of covered telecommunications equipment or services, and any additional efforts that will be incorporated to prevent future use or submission of covered telecommunications equipment or services.

(e) Subcontracts. The Contractor shall insert the substance of this clause, including this paragraph (e) and excluding paragraph (b)(2), in all subcontracts and other contractual instruments, including subcontracts for the acquisition of commercial products or commercial services.

(End of clause)

26.2.4 FAR 52.212.5 - Contract Terms and Conditions Required to Implement Statutes or Executive Orders - Commercial Products and Commercial Services (OCT 2025)

(a) The Contractor shall comply with the following Federal Acquisition Regulation (FAR) clauses, which are incorporated in this contract by reference, to implement provisions of law or Executive orders applicable to acquisitions of commercial products and commercial services:

(1) 52.203-19, Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements (JAN 2017) (section 743 of Division E, Title VII, of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235) and its successor provisions in subsequent appropriations acts (and as extended in continuing resolutions)).

(2) 52.204-23, Prohibition on Contracting for Hardware, Software, and Services Developed or Provided by Kaspersky Lab Covered Entities (DEC 2023) (Section 1634 of Pub. L. 115-91).

(3) 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment. (NOV 2021) (Section 889(a)(1)(A) of Pub. L. 115-232).

(4) 52.209-10, Prohibition on Contracting with Inverted Domestic Corporations (NOV 2015).

(5) 52.232-40, Providing Accelerated Payments to Small Business Subcontractors (MAR 2023) (31 U.S.C. 3903 and 10 U.S.C. 3801).

(6) 52.233-3, Protest After Award (AUG 1996) (31 U.S.C. 3553).

(7) 52.233-4, Applicable Law for Breach of Contract Claim (OCT 2004) (Public Laws 108-77 and 108-78 (19 U.S.C. 3805 note)).

(b) The Contractor shall comply with the FAR clauses in this paragraph (b) that the Contracting Officer has indicated as being incorporated in this contract by reference to implement provisions of law or Executive orders applicable to acquisitions of commercial products and commercial services:

_X_ (1) 52.203-6, Restrictions on Subcontractor Sales to the Government (JUN 2020), with *Alternate I* (NOV 2021) (41 U.S.C. 4704 and 10 U.S.C. 4655).

_X_ (2) 52.203-13, Contractor Code of Business Ethics and Conduct (NOV 2021) (41 U.S.C. 3509)).

_X_ (3) 52.203-15, Whistleblower Protections under the American Recovery and Reinvestment Act of 2009 (JUN 2010) (Section 1553 of Pub. L. 111-5). (Applies to contracts funded by the American Recovery and Reinvestment Act of 2009.)

__ (4) 52.203-17, Contractor Employee Whistleblower Rights (NOV 2023) (41 U.S.C. 4712); this clause does not apply to contracts of DoD, NASA, the Coast Guard, or applicable elements of the intelligence community—see FAR 3.900(a).

__ (5) 52.204-10, Reporting Executive Compensation and First-Tier Subcontract Awards (JUN 2020) (Pub. L. 109-282) (31 U.S.C. 6101 note).

__ (6) [Reserved].

__ (7) 52.204-14, Service Contract Reporting Requirements (OCT 2016) (Pub. L. 111-117, section 743 of Div. C).

__ (8) 52.204-15, Service Contract Reporting Requirements for Indefinite-Delivery Contracts (OCT 2016) (Pub. L. 111-117, section 743 of Div. C).

__ (9) 52.204-27, Prohibition on a ByteDance Covered Application (JUN 2023) (Section 102 of Division R of Pub. L. 117-328).

__ (10) 52.204-28, Federal Acquisition Supply Chain Security Act Orders—Federal Supply Schedules, Governmentwide Acquisition Contracts, and Multi-Agency Contracts. (DEC 2023) (Pub. L. 115–390, title II).

__ (11)

(i) 52.204-30, Federal Acquisition Supply Chain Security Act Orders—Prohibition. (DEC 2023) (Pub. L. 115–390, title II).
__ (ii) Alternate I (DEC 2023) of 52.204–30.

_X_ (12) 52.209-6, Protecting the Government's Interest When Subcontracting with Contractors Debarred, Suspended, or Proposed for Debarment. (NOV 2021) (31 U.S.C. 6101 note).

_X_ (13) 52.209-9, Updates of Publicly Available Information Regarding Responsibility Matters (OCT 2018) (41 U.S.C. 2313).

__ (14) [Reserved].

__ (15) 52.219-3, Notice of HUBZone Set-Aside or Sole-Source Award (OCT 2022) (15 U.S.C. 657a).

__ (16) 52.219-4, Notice of Price Evaluation Preference for HUBZone Small Business Concerns (OCT 2022) (if the offeror elects to waive the preference, it shall so indicate in its offer) (15 U.S.C. 657a).

__ (17) [Reserved]

__ (18)
(i) 52.219-6, Notice of Total Small Business Set-Aside (NOV 2020) (15 U.S.C. 644).
__ (ii) Alternate I (MAR 2020) of 52.219-6.

__ (19)
(i) 52.219-7, Notice of Partial Small Business Set-Aside (NOV 2020) (15 U.S.C. 644).
__ (ii) Alternate I (MAR 2020) of 52.219-7.

__ (20) 52.219-8, Utilization of Small Business Concerns (FEB 2024) (15 U.S.C. 637(d)(2) and (3)).

__ (21)
(i) 52.219-9, Small Business Subcontracting Plan (SEP 2023) (15 U.S.C. 637(d)(4)).
__ (ii) Alternate I (NOV 2016) of 52.219-9.
__ (iii) Alternate II (NOV 2016) of 52.219-9.
__ (iv) Alternate III (JUN 2020) of 52.219-9.
__ (v) Alternate IV (SEP 2023) of 52.219-9.

__ (22)
(i) 52.219-13, Notice of Set-Aside of Orders (MAR 2020) (15 U.S.C. 644(r)).
__ (ii) Alternate I (MAR 2020) of 52.219-13.

__ (23) 52.219-14, Limitations on Subcontracting (OCT 2022) (15 U.S.C. 637s).

__ (24) 52.219-16, Liquidated Damages—Subcontracting Plan (SEP 2021) (15 U.S.C. 637(d)(4)(F)(i)).

__ (25) 52.219-27, Notice of Set-Aside for, or Sole-Source Award to, Service-Disabled Veteran-Owned Small Business (SDVOSB) Concerns Eligible Under the SDVOSB Program (FEB 2024) (15 U.S.C. 657f).

__ (26)
(i) 52.219-28, Post Award Small Business Program Rerepresentation (FEB 2024) (15 U.S.C. 632(a)(2)).
__ (ii) Alternate I (MAR 2020) of 52.219-28.
__ (27) 52.219-29, Notice of Set-Aside for, or Sole-Source Award to, Economically Disadvantaged Women-Owned Small Business Concerns (OCT 2022) (15 U.S.C. 637(m)).

__ (28) 52.219-30, Notice of Set-Aside for, or Sole-Source Award to, Women-Owned Small Business Concerns Eligible Under the Women-Owned Small Business Program (OCT 2022) (15 U.S.C. 637(m)).

__ (29) 52.219-32, Orders Issued Directly Under Small Business Reserves (MAR 2020) (15 U.S.C. 644(r)).

__ (30) 52.219-33, Nonmanufacturer Rule (SEP 2021) (15U.S.C. 637(a)(17)).

__ (31) 52.222-3, Convict Labor (JUN 2003) (E.O.11755).

__ (32) 52.222-19, Child Labor-Cooperation with Authorities and Remedies (FEB 2024).

__ (33) 52.222-21, Prohibition of Segregated Facilities (APR 2015).

__ (34)
(i) 52.222-26, Equal Opportunity (SEP 2016) (E.O.11246).
__ (ii) Alternate I (FEB 1999) of 52.222-26.
__ (35)
(i) 52.222-35, Equal Opportunity for Veterans (JUN 2020) (38 U.S.C. 4212).
__ (ii) Alternate I (JUL 2014) of 52.222-35.
__ (36)
(i) 52.222-36, Equal Opportunity for Workers with Disabilities (JUN 2020) (29 U.S.C. 793).
__ (ii) Alternate I (JUL 2014) of 52.222-36.
__ (37) 52.222-37, Employment Reports on Veterans (JUN 2020) (38 U.S.C. 4212).

__ (38) 52.222-40, Notification of Employee Rights Under the National Labor Relations Act (DEC 2010) (E.O. 13496).
__ (39)
(i) 52.222-50, Combating Trafficking in Persons (NOV 2021) (22 U.S.C. chapter 78 and E.O. 13627).
__ (ii) Alternate I (MAR 2015) of 52.222-50 (22 U.S.C. chapter 78 and E.O. 13627).

__ (40) 52.222-54, Employment Eligibility Verification (MAY 2022) (Executive Order 12989). (Not applicable to the acquisition of commercially available off-the-shelf items or certain other types of commercial products or commercial services as prescribed in FAR 22.1803.)

__ (41)

(i) 52.223-9, Estimate of Percentage of Recovered Material Content for EPA–Designated Items (May 2008) (42 U.S.C. 6962(c)(3)(A)(ii)). (Not applicable to the acquisition of commercially available off-the-shelf items.)

__ (ii) Alternate I (MAY 2008) of 52.223-9 (42 U.S.C. 6962(i)(2)(C)). (Not applicable to the acquisition of commercially available off-the-shelf items.)

__ (42) 52.223-11, Ozone-Depleting Substances and High Global Warming Potential Hydrofluorocarbons (Jun 2016) (E.O. 13693).

__ (43) 52.223-12, Maintenance, Service, Repair, or Disposal of Refrigeration Equipment and Air Conditioners (JUN 2016) (E.O. 13693).

__ (44)

(i) 52.223-13, Acquisition of EPEAT®-Registered Imaging Equipment (JUN 2014) (E.O.s 13423 and 13514).

__ (ii) Alternate I (OCT 2015) of 52.223-13.

__ (45)

(i) 52.223-14, Acquisition of EPEAT®-Registered Televisions (JUN 2014) (E.O.s 13423 and 13514).

__ (ii) Alternate I (Jun2014) of 52.223-14.

__ (46) 52.223-15, Energy Efficiency in Energy Consuming Products (MAY 2020) (42 U.S.C. 8259b).

__ (47)

(i) 52.223-16, Acquisition of EPEAT®-Registered Personal Computer Products (OCT 2015) (E.O.s 13423 and 13514).

__ (ii) Alternate I (JUN 2014) of 52.223-16.

__ (48) 52.223-18, Encouraging Contractor Policies to Ban Text Messaging While Driving (JUN 2020) (E.O. 13513).

__ (49) 52.223-20, Aerosols (JUN 2016) (E.O. 13693).

__ (50) 52.223-21, Foams (Jun2016) (E.O. 13693).

__ (51)

(i) 52.224-3 Privacy Training (JAN 2017) (5 U.S.C. 552 a).

__ (ii) Alternate I (JAN 2017) of 52.224-3.

__ (52)

(i) 52.225-1, Buy American-Supplies (OCT 2022) (41 U.S.C. chapter 83).

__ (ii) Alternate I (OCT 2022) of 52.225-1.

__ (53)
(i) 52.225-3, Buy American-Free Trade Agreements-Israeli Trade Act (NOV 2023) (19 U.S.C. 3301 note, 19 U.S.C. 2112 note, 19 U.S.C. 3805 note, 19 U.S.C. 4001 note, 19 U.S.C. chapter 29 (sections 4501-4732), Public Law 103-182, 108-77, 108-78, 108-286, 108-302, 109-53, 109-169, 109-283, 110-138, 112-41, 112-42, and 112-43.
__ (ii) Alternate I [Reserved].
__ (iii) Alternate II (DEC 2022) of 52.225-3.
__ (iv) Alternate III (FEB 2024) of 52.225-3.
__ (v) Alternate IV (Oct 2022) of 52.225-3.

__ (54) 52.225-5, Trade Agreements (NOV 2023) (19 U.S.C. 2501, *et seq*., 19 U.S.C. 3301 note).

__ (55) 52.225-13, Restrictions on Certain Foreign Purchases (FEB 2021) (E.O.'s, proclamations, and statutes administered by the Office of Foreign Assets Control of the Department of the Treasury).

__ (56) 52.225-26, Contractors Performing Private Security Functions Outside the United States (Oct 2016) (Section 862, as amended, of the National Defense Authorization Act for Fiscal Year 2008; 10 U.S.C. Subtitle A, Part V, Subpart G Note).

__ (57) 52.226-4, Notice of Disaster or Emergency Area Set-Aside (Nov 2007) (42 U.S.C. 5150).

__ (58) 52.226-5, Restrictions on Subcontracting Outside Disaster or Emergency Area (Nov2007) (42 U.S.C. 5150).

__ (59) 52.229-12, Tax on Certain Foreign Procurements (FEB 2021).
__ (60) 52.232-29, Terms for Financing of Purchases of Commercial Products and Commercial Services (NOV 2021) (41 U.S.C. 4505, 10 U.S.C. 3805).

__ (61) 52.232-30, Installment Payments for Commercial Products and Commercial Services (NOV 2021) (41 U.S.C. 4505, 10 U.S.C. 3805).

__ (62) 52.232-33, Payment by Electronic Funds Transfer-System for Award Management (OCT2018) (31 U.S.C. 3332).

__ (63) 52.232-34, Payment by Electronic Funds Transfer-Other than System for Award Management (Jul 2013) (31 U.S.C. 3332).

__ (64) 52.232-36, Payment by Third Party (MAY 2014) (31 U.S.C. 3332).

__ (65) 52.239-1, Privacy or Security Safeguards (AUG 1996) (5 U.S.C. 552a).

__ (66) 52.242-5, Payments to Small Business Subcontractors (JAN 2017) (15 U.S.C. 637(d)(13)).

__ (67)
(i) 52.247-64, Preference for Privately Owned U.S.-Flag Commercial Vessels (NOV 2021) (46 U.S.C. 55305 and 10 U.S.C. 2631).
__ (ii) Alternate I (APR 2003) of 52.247-64.
__ (iii) Alternate II (NOV 2021) of 52.247-64.

(c) The Contractor shall comply with the FAR clauses in this paragraph (c), applicable to commercial services, that the Contracting Officer has indicated as being incorporated in this contract by reference to implement provisions of law or Executive orders applicable to acquisitions of commercial products and commercial services:

__ (1) 52.222-41, Service Contract Labor Standards (AUG 2018) (41 U.S.C. chapter67).

__ (2) 52.222-42, Statement of Equivalent Rates for Federal Hires (MAY 2014) (29 U.S.C. 206 and 41 U.S.C. chapter 67).

__ (3) 52.222-43, Fair Labor Standards Act and Service Contract Labor Standards-Price Adjustment (Multiple Year and Option Contracts) (AUG 2018) (29 U.S.C. 206 and 41 U.S.C. chapter 67).

__ (4) 52.222-44, Fair Labor Standards Act and Service Contract Labor Standards-Price Adjustment (May 2014) (29U.S.C.206 and 41 U.S.C. chapter 67).

__ (5) 52.222-51, Exemption from Application of the Service Contract Labor Standards to Contracts for Maintenance, Calibration, or Repair of Certain Equipment-Requirements (May 2014) (41 U.S.C. chapter 67).

__ (6) 52.222-53, Exemption from Application of the Service Contract Labor Standards to Contracts for Certain Services-Requirements (MAY 2014) (41 U.S.C. chapter 67).

__ (7) 52.222-55, Minimum Wages for Contractor Workers Under Executive Order 14026 (JAN 2022).

__ (8) 52.222-62, Paid Sick Leave Under Executive Order 13706 (JAN 2022) (E.O. 13706).

__ (9) 52.226-6, Promoting Excess Food Donation to Nonprofit Organizations (Jun 2020) (42 U.S.C. 1792).

(d) *Comptroller General Examination of Record*. The Contractor shall comply with the provisions of this paragraph (d) if this contract was awarded using other than sealed bid, is in excess of the simplified acquisition threshold, as defined in FAR 2.101, on the date of award of this contract, and does not contain the clause at 52.215-2, Audit and Records-Negotiation.

(1) The Comptroller General of the United States, or an authorized representative of the Comptroller General, shall have access to and right to examine any of the Contractor's directly pertinent records involving transactions related to this contract.

(2) The Contractor shall make available at its offices at all reasonable times the records, materials, and other evidence for examination, audit, or reproduction, until 3 years after final payment under this contract or for any shorter period specified in FAR subpart 4.7, Contractor Records Retention, of the other clauses of this contract. If this contract is completely or partially terminated, the records relating to the work terminated shall be made available for 3 years after any resulting final termination settlement. Records relating to appeals under the disputes clause or to litigation or the settlement of claims arising under or relating to this contract shall be made available until such appeals, litigation, or claims are finally resolved.

(3) As used in this clause, records include books, documents, accounting procedures and practices, and other data, regardless of type and regardless of form. This does not require the Contractor to create or maintain any record that the Contractor does not maintain in the ordinary course of business or pursuant to a provision of law.

(e)

(1) Notwithstanding the requirements of the clauses in paragraphs (a), (b), (c), and (d) of this clause, the Contractor is not required to flow down any FAR clause, other than those in this paragraph (e)(1), in a subcontract for commercial products or commercial services. Unless otherwise indicated below, the extent of the flow down shall be as required by the clause-

(i) 52.203-13, Contractor Code of Business Ethics and Conduct (NOV 2021) (41 U.S.C. 3509).

(ii) 52.203-17, Contractor Employee Whistleblower Rights (NOV 2023) (41 U.S.C. 4712).

(iii) 52.203-19, Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements (Jan 2017) (section 743 of Division E, Title VII, of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235) and its successor provisions in subsequent appropriations acts (and as extended in continuing resolutions)).

(iv) 52.204-23, Prohibition on Contracting for Hardware, Software, and Services Developed or Provided by Kaspersky Lab Covered Entities (DEC 2023) (Section 1634 of Pub. L. 115-91).
(v) 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment. (NOV 2021) (Section 889(a)(1)(A) of Pub. L. 115-232).
(vi) 52.204-27, Prohibition on a ByteDance Covered Application (JUN 2023) (Section 102 of Division R of Pub. L. 117-328).

(vii)
(A) 52.204–30, Federal Acquisition Supply Chain Security Act Orders—Prohibition. (DEC 2023) (Pub. L. 115–390, title II).
(B) Alternate I (DEC 2023) of 52.204–30.
(viii) 52.219-8, Utilization of Small Business Concerns (FEB 2024) (15 U.S.C. 637(d)(2) and (3)), in all subcontracts that offer further subcontracting opportunities. If the subcontract (except subcontracts to small business concerns) exceeds the applicable threshold specified in FAR 19.702(a) on the date of subcontract award, the subcontractor must include 52.219-8 in lower tier subcontracts that offer subcontracting opportunities.

(ix) 52.222-21, Prohibition of Segregated Facilities (APR 2015).

(x) 52.222-26, Equal Opportunity (SEP 2015) (E.O.11246).

(xi) 52.222-35, Equal Opportunity for Veterans (JUN 2020) (38 U.S.C. 4212).

(xii) 52.222-36, Equal Opportunity for Workers with Disabilities (JUN 2020) (29 U.S.C. 793).

(xiii) 52.222-37, Employment Reports on Veterans (JUN 2020) (38 U.S.C. 4212).

(xiv) 52.222-40, Notification of Employee Rights Under the National Labor Relations Act (DEC 2010) (E.O. 13496). Flow down required in accordance with paragraph (f) of FAR clause 52.222-40.

(xv) 52.222-41, Service Contract Labor Standards (AUG 2018) (41 U.S.C. chapter 67).

(xvi)
(A) 52.222-50, Combating Trafficking in Persons (NOV 2021) (22 U.S.C. chapter 78 and E.O 13627).
(B) Alternate I (MAR 2015) of 52.222-50 (22 U.S.C. chapter 78 and E.O. 13627).

(xvii) 52.222-51, Exemption from Application of the Service Contract Labor Standards to Contracts for Maintenance, Calibration, or Repair of Certain Equipment-Requirements (May 2014) (41 U.S.C. chapter 67).

(xviii) 52.222-53, Exemption from Application of the Service Contract Labor Standards to Contracts for Certain Services-Requirements (MAY 2014) (41 U.S.C. chapter 67).

(xix) 52.222-54, Employment Eligibility Verification (MAY 2022) (E.O. 12989).

(xx) 52.222-55, Minimum Wages for Contractor Workers Under Executive Order 14026 (JAN 2022).

(xxi) 52.222-62, Paid Sick Leave Under Executive Order 13706 (JAN 2022) (E.O. 13706).

(xxii)
(A) 52.224-3, Privacy Training (Jan 2017) (5 U.S.C. 552a).
(B) Alternate I (JAN 2017) of 52.224-3.

(xxiii) 52.225-26, Contractors Performing Private Security Functions Outside the United States (OCT 2016) (Section 862, as amended, of the National Defense Authorization Act for Fiscal Year 2008; 10 U.S.C. Subtitle A, Part V, Subpart G Note).

(xxiv) 52.226-6, Promoting Excess Food Donation to Nonprofit Organizations (JUN 2020) (42 U.S.C. 1792). Flow down required in accordance with paragraph (e) of FAR clause 52.226-6.

(xxv) 52.232-40, Providing Accelerated Payments to Small Business Subcontractors (Mar 2023) (31 U.S.C. 3903 and 10 U.S.C. 3801). Flow down required in accordance with paragraph (c) of 52.232-40.

(xxvi) 52.247-64, Preference for Privately Owned U.S.-Flag Commercial Vessels (NOV 2021) (46 U.S.C. 55305 and 10 U.S.C. 2631). Flow down required in accordance with paragraph (d) of FAR clause 52.247-64.

(2) While not required, the Contractor may include in its subcontracts for commercial products and commercial services a minimal number of additional clauses necessary to satisfy its contractual obligations.

(End of Clause)

26.2.5 FAR 52.217-8 OPTION TO EXTEND SERVICES (NOV 1999)

The Government may require continued performance of any services within the limits and at the rates specified in the contract. These rates may be adjusted only as a result of revisions to prevailing labor rates provided by the Secretary of Labor. The option provision may be exercised more than once, but the total extension of performance hereunder shall not exceed 6 months. The Contracting Officer may exercise the option by written notice to the Contractor prior to the expiration of the current performance period.

(End of Clause)

26.6 FAR 52.217-9 OPTION TO EXTEND THE TERM OF THE CONTRACT (MAR 2000)

(a) The Government may extend the term of this contract by written notice to the Contractor within 30 days; provided that the Government gives the Contractor a preliminary written notice of its intent to extend at least 30 days before the contract expires. The preliminary notice does not commit the Government to an extension.
(b) If the Government exercises this option, the extended contract shall be considered to include this option clause.
(c) The total duration of this contract, including the exercise of any options under this clause, shall not exceed five (5).

(End of Clause)

27. DEPARTMENT OF TRANSPORTATION (DOT) CLAUSES INCORPORATED BY REFERENCE

This contract incorporates the following Transportation Acquisition Regulation clauses by reference (as indicated by an "X"), with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make the full text available.

Applicable "X"	TAR Clause Number	TAR Clause Title
X	1252.223-73	Seat Belt Use Policies and Programs (NOV 2022)
X	1252.242-71	Contractor Testimony (NOV 2022)
X	1252.242-72	Dissemination of Contract Information (NOV 2022)

28. INSTRUCTIONS TO OFFERORS

28.1 QUOTATONS DELIVERY

FAR 52.212-1 Instructions to Offerors—Commercial Products and Commercial Services. (SEP 2023), applies to this acquisition.

The Technical and Price proposals shall be submitted in two separate volumes. Offers must include the following information on the cover page of each volume:

1. Solicitation Number
2. The time specified in the solicitation for receipt of offers.
3. The name, address, and telephone number of the offeror.
4. A technical description of the items being offered in sufficient detail to evaluate compliance with the requirements in the solicitation. This may include services literature, or other documents, if necessary.
5. Price and any discount terms
6. "Remit to" address, if different than mailing address
7. A completed copy of the representations and certifications at Federal Acquisition Regulation (FAR) 52.212-3 (see FAR 52.212-3(b) for those representations and certifications that the offeror shall complete electronically)
8. Acknowledgment of Solicitation Amendments
9. Past performance information, when included as an evaluation factor, to include recent and relevant contracts for the same or similar items and other references (including contract numbers, points of contact with telephone numbers and other relevant information); and
10. If the offer is not submitted on the SF 1449, include a statement specifying the extent of agreement with all terms, conditions, and provisions included in the solicitation. Offers that fail to furnish required representations or information or reject the terms and conditions of the solicitation may be excluded from consideration.
11. Late submissions, modifications, revisions, and withdrawals of offers. (1) Offerors are responsible for submitting offers, and any modifications, revisions, or withdrawals, so as to

reach the Government office designated in the solicitation by the time specified in the solicitation. If no time is specified in the solicitation, the time for receipt is 12:00 p.m., Eastern Time, for the designated Government office on the date that offers or revisions are due.

12. Any offer, modification, revision, or withdrawal of an offer received at the Government office designated in the solicitation after the exact time specified for receipt of offers is "late" and will not be considered.
13. Unique Entity Identifier (UEI)
14. North American Industrial Classification System (NAICS) Code: 541511
15. Product Service Code (PSC): B539
16. The validity period of the quote [Offeror's Quotation(s) must be valid for at least 90 calendar days]
17. The offer shall also indicate a statement that the SAM record has been entered in www.sam.gov or updated in the last 12 months, are current, accurate, complete, and applicable to this solicitation.

29. BASIS FOR AWARD

This acquisition will be procured in accordance with FAR Part 12 – Acquisition of Commercial Items.

Government intends to evaluate offers and award a contract without discussions with offerors. Therefore, the offeror's initial offer should contain the offeror's best terms from a price and technical standpoint. However, the Government reserves the right to conduct discussions if later determined by the Contracting Officer to be necessary. The Government may reject any or all offers if such action is in the public interest; accept other than the lowest offer; and waive informalities and minor irregularities in offers received, in accordance with FAR 52.212-1(g).

The Government will award a contract resulting from this solicitation to the responsible offeror whose offer conforming to the solicitation will be most advantageous to the Government, price and other factors considered. The Government reserves the right to require the Offerors to submit additional information as necessary to support a pre- award determination of responsibility.

Proposals will be carefully evaluated based on the demonstrated capabilities of the prospective contractor in relation to the needs of the requirement, set forth in Sections 1 and 4 above.

The Government will evaluate proposals and make a best value award decision based on the following factors:

Proposals shall be evaluated against the requirements of the solicitation and on the basis of the technical factors and the price factor.

In making its selection decision, the Government will consider the following criteria listed in descending order of importance:

- Technical Capability/Approach/Frequency of Data Updates/Comprehensiveness of Historical Data
- Presentation/Demonstration of Capabilities
- Web-based application
- Past Performance
- Price

The technical capability factors, presentation/demonstration of capabilities, web-based application, and past performance, combined are more important than the price factor.

30. <u>WHAT TO SUBMIT</u>

FAR 52.212-2 EVALUATION- COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES (NOV 2021)

> The Government will award a contract resulting from this solicitation to the responsible offeror whose offer conforming to the solicitation will be most advantageous to the Government, price and other factors considered. The following factors shall be used to evaluate offers:

Offerors shall submit a proposal consisting of two (2) volumes: Volume I (Technical) and Volume II (Cost/Price).

Volume I - Technical Capacity/Approach/Frequency of Data Updates/Comprehensiveness of Historical Data

The overall technical proposal **<u>shall not exceed 60 pages (Excluding Resumes)</u>**. The Technical Proposal, Volume I, will be evaluated in accordance with the requirements detailed in section this RFP.

Volume I: Technical Proposal shall be submitted in (4) parts:

Part I: Technical Capacity/Approach/Frequency of Data Updates/Comprehensiveness of Historical Data
Part II: Presentation/Demonstration of Capabilities
Part III: Web-based application
Part IV: Past Performance
Part V: Price

Volume I shall be presented in 11- point font or larger. The dimensions of each page in Volume I shall be no greater than 8.5 inches by 11 inches. Footnotes, legends, or labels associated with tables or diagrams, and other information that is ancillary to the main text, may be presented in a font size smaller than 11- point font, provided that any such smaller font is fully legible.

Resumes are not considered ancillary material and must therefore be presented in 11-point fonts or larger.

Part I: Technical Capacity/Approach/Frequency of Data Updates/Comprehensiveness of Historical Data **-** Page Limit NTE 60 pages.

The Government will evaluate the offeror's proposed approach to technical understanding of the requirements with the SOW, their corporate knowledge and experience and the relevancy of the experience. The technical proposal shall provide the general background, experience, and capabilities, frequency of date and comprehensive ness of historical data.

The technical proposal shall demonstrate the approach, methods and procedures for satisfying the requirements and a discussion of potential problems to be encountered. The technical proposal shall demonstrate their procedures for assuring quality in the work and labor categories unique to DOT.

The technical proposal shall be evaluated on the offeror's capabilities, as they relate to key areas in the SOW, including:

- Global origination and destination (OD) data, fare data, service class information, fair share/QSI data, and local and flow data by route and carrier.
- Global schedule data by airline: historical, current, and future schedule information for global carriers that includes flight level granularity: flight number, arrival and departure times, aircraft type, number of seats on aircraft on a market-by-market basis.
- Current and historical fleet information per airline (i.e., a fleet database), with capacity and cabin configuration; also includes seat capacity and cabin class by aircraft and flight.
- Advanced booking data by market and airline. The advanced booking data should be derived from airline industry sources, such as airlines, global distribution systems (GDS), or screen scraping providers.
- Data should be available going back to at least 2005, if not further, and include attribute data for airports and air carriers.
- OAG, Innovata or comparable schedule product updates, minimum of weekly.
- Regular updates as frequently as possible (monthly preferred), to the demand and fare file which includes the following elements/attributes: updated traffic, fare, load factor, booking, and on-time performance data.

Part II: Presentation/Demonstration of Capabilities – No Page Limit

A demonstration of the solution shall be made available by Offerors to DOT personnel and shall constitute a decisional criterial for selection of the contract award by the selection team.

The Government will allow the Offeror an opportunity demonstrate its capabilities an understanding of the requirements within the Statement of Work. It is the Offerors responsibility to schedule a presentation by the deadline advertised in this RFP.

Offerors shall demonstrate its approach to addressing the work and explain how they will meet the contract requirements and objectives. Offerors response is not meant to repeat or echo the requirements within this solicitation, but to demonstrate an understanding of the airline analysis and scheduling solutions via a web application and any unique experience the offeror's team may consider a to demonstrate to the government.

Part III: Web-based Application - (3 pages for each project)

The solution must be web-based and accessible through a website for at least 10 users, each with dedicate usernames and passwords.

Part VI: Past Performance

Past Performance will be determined to be "Relevant" or "Non Relevant."

The Offeror shall provide a list of (3) three recent projects completed within last five (5) years that were similar to the effort described in this solicitation. A minimum of two (2) projects must be completed by the Prime on the work cited and at least one (1) project must be completed by the Subcontractor, with all three projects completed in the area of U.S. government technical assistance and capacity building in an international context. This list should include dates on which the project began and was completed, total dollar value of the contract, contract number, customer name including contact information, and a brief synopsis of the project. Additional information may be provided that helps explain relevant experience in international events management in regions around the world.

Past performance shall demonstrate at least 8 years of experience and explain how has your company performed on previous government or private industry customers? Were previous customers satisfied? Provide past performance ratings from current and or previous customers. Include references and phone numbers of current and or previous customers where related experience per the SOW applies.

The Offeror shall provide the following information:

- Contract or Agreement Number, Project Name (if applicable) and Current name of the customer
- Point of contact with email address and telephone number
- Whether this was a commercial or Government entity
- Brief description of the project and type of work performed (clearly show size and scope relevance to this requirement).
- Identities of team members/subcontractors and their roles (If the Offeror was a subcontractor, provide the percentage of work it performed with a detailed description of only the actual work performed.)
- Contract or Agreement Value
- Period of Performance
- Project start
- Original completion date
- Explanation of any changes in performance dates and/or delays
- Problems encountered and their resolution.

The Government may contact the customer point of contact (POC) for verification. POC contact information must be accurate and current. Offerors also shall provide information regarding any

contracts that were terminated for default or convenience of the Government within the past three years. The Offeror shall provide explanations of the circumstances in each case.

Part V: Price

a. Price Information

An Offeror shall provide its pricing schedule based on the pricing table template provided. The proposal shall be prepared in accordance with the Offeror's accounting system and current business practices.

As part of its price proposal, the Offeror shall also provide the following information:

A. RFP Number and Project Title
B. Offeror's Point of contact for this project including name, title, address, phone number, and email address
C. Tax Identification Number (TIN)
D. Unique Entity Identifier (UEI)
E. North American Industrial Classification System (NAICS) Code:
F. Product Service Code (PSC):
G. The validity period of the quote [Offeror's quote(s) must be valid for at least 90 calendar days.]

The vendor's price quote will be evaluated for price reasonableness only if the quoter receives an overall technical rating of ACCEPTABLE. The vendor's price quote will also be evaluated to determine whether the prices are consistent with the vendor's technical quote.

The Cost Proposal will be analyzed and evaluated to determine the reasonableness of the Offeror's proposed cost. Cost proposals will also be analyzed to assess realism and probable cost to the Government.

The purpose of this analysis will be to determine if the Offeror's proposed cost reasonably reflect that the Offeror understands and addresses the Government's requirement(s). The proposed costs may be adjusted, for the purpose of evaluation, based upon the results of the price realism assessment.

Note: In the event that no historical record of past performance has been established, the Offeror will be rated "neutral" for this factor. If the Offeror's established record of past performance is poor, the Offeror will be given a "poor" rating for the evaluation factor.

OVERALL PROPOSAL RATINGS

Adjectival Ratings for Technical Capacity/Approach/Frequency of Data Updates/Comprehensiveness of Historical Data, Presentation/Demonstration of Capabilities which includes Staffing/Resumes and List of Proposed Key Personnel, and Past Performance, Wed-Based Application, Past Performance, Price and its associated sub-factors are Outstanding, Good, Acceptable, and Unacceptable, are defined below:

- Outstanding - A proposal that satisfies all of the Government's requirements with extensive detail to indicate feasibility of the approach and shows a thorough understanding of the problems and offers numerous significant strengths, no deficiencies and weaknesses, with an overall low degree of risk in meeting the Government's requirements.

- Good - A proposal that satisfies all of the Government's requirements with adequate detail and with no more than one (1) deficiency, two (2) significant weaknesses, or three (3) or more weaknesses to indicate feasibility of the approach and shows an understanding of the problems with an overall low to moderate degree of risk in meeting the Government's requirements.

- Acceptable - A proposal that satisfies all of the Government's requirements with minimal detail and with no more than two (2) deficiencies, three (3) significant weaknesses or four or more weaknesses to indicate feasibility of the approach and shows a minimal understanding of the problems, with an overall moderate to high degree of risk in meeting the Government's requirements.

- Unacceptable - A proposal that contains a major error(s), omission(s) or deficiency(ies) that indicates a lack of understanding of the problems or an approach that cannot be expected to meet requirements or involves a very high risk; and none of these conditions can be corrected

  without a major rewrite or revision of the proposal.

- Neutral - A rating of neutral is applicable only to the past performance rating category. A proposal will receive a neutral rating for past performance when it does not contain any past performance because the Offeror lacks relevant past performance history and will qualify for a neutral rating. A rating of neutral is neither negative nor positive.

Below are the definitions used for Adjectival Ratings, which include "significant" strength and "significant" weakness as subcategories of strengths and weaknesses:

"Deficiency" – is a material failure of a proposal to meet a Government requirement or a combination of significant weaknesses in a proposal that increases the risk of unsuccessful contract performance to an unacceptable level.

"Weakness" – a flaw in the proposal that increases the risk of unsuccessful contract performance. A "significant weakness" in the proposal is a flaw that appreciably increases the risk of unsuccessful contract performance.

"Strength" – a strength is a proposal characteristic which adds value to the Offeror's Technical or price proposal by incorporating work methods, Technology, design changes or other benefits which significantly improve the probability of successful, efficient performance. A significant strength adds substantial value and appreciably increases the probability of successful performance.

31. ASSUMPTIONS AND CONDITIONS

Contractors are expected to meet all specifications associated with the Statement of Work (SOW) contained herein. Contractors specifying any assumptions, conditions, or exceptions in their quotes which are not agreeable to the Government may be considered non-responsive and rejected.

FAR 52.204-7 System for Award Management (OCT 2018)
FAR 52.217-5 Evaluation of Options (JUL 1990)

FAR 52.212-3 OFFEROR REPRESENTATIONS AND CERTIFICATIONS - COMMERCIAL ITEMS (FEB 2024)

The Offeror shall complete only paragraph (b) of this provision if the Offeror has completed the annual representations and certification electronically in the System for Award Management (SAM) accessed through https://www.sam.gov. If the Offeror has not completed the annual representations and certifications electronically, the Offeror shall complete only paragraphs (c) through (v) of this provision.

(a) *Definitions*. As used in this provision—

Covered telecommunications equipment or services has the meaning provided in the clause 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment.

Economically disadvantaged women-owned small business (EDWOSB) concern means a small business concern that is at least 51 percent directly and unconditionally owned by, and the management and daily business operations of which are controlled by, one or more women who are citizens of the United States and who are economically disadvantaged in accordance with 13 CFR part 127, and the concern is certified by SBA or an approved third-party certifier in accordance with 13 CFR 127.300. It automatically qualifies as a women-owned small business eligible under the WOSB Program.

Forced or indentured child labor means all work or service—

(1) Exacted from any person under the age of 18 under the menace of any penalty for its nonperformance and for which the worker does not offer himself voluntarily; or

(2) Performed by any person under the age of 18 pursuant to a contract the enforcement of which can be accomplished by process or penalties.

Highest-level owner means the entity that owns or controls an immediate owner of the offeror, or that owns or controls one or more entities that control an immediate owner of the offeror. No entity owns or exercises control of the highest level owner.

Immediate owner means an entity, other than the offeror, that has direct control of the offeror. Indicators of control include, but are not limited to, one or more of the following: ownership or interlocking management, identity of interests among family members, shared facilities and

equipment, and the common use of employees.

Inverted domestic corporation, means a foreign incorporated entity that meets the definition of an inverted domestic corporation under 6 U.S.C. 395(b), applied in accordance with the rules and definitions of 6 U.S.C. 395(c).

Manufactured end product means any end product in product and service codes (PSCs) 1000-9999, except—

(1) PSC 5510, Lumber and Related Basic Wood Materials;
(2) Product or Service Group (PSG) 87, Agricultural Supplies;
(3) PSG 88, Live Animals;
(4) PSG 89, Subsistence;
(5) PSC 9410, Crude Grades of Plant Materials;
(6) PSC 9430, Miscellaneous Crude Animal Products, Inedible;
(7) PSC 9440, Miscellaneous Crude Agricultural and Forestry Products;
(8) PSC 9610, Ores;
(9) PSC 9620, Minerals, Natural and Synthetic; and
(10) PSC 9630, Additive Metal Materials.

Place of manufacture means the place where an end product is assembled out of components, or otherwise made or processed from raw materials into the finished product that is to be provided to the Government. If a product is disassembled and reassembled, the place of reassembly is not the place of manufacture.

Predecessor means an entity that is replaced by a successor and includes any predecessors of the predecessor.

Reasonable inquiry has the meaning provided in the clause 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment.

Restricted business operations means business operations in Sudan that include power production activities, mineral extraction activities, oil-related activities, or the production of military equipment, as those terms are defined in the Sudan Accountability and Divestment Act of 2007 (Pub. L. 110-174). Restricted business operations do not include business operations that the person (as that term is defined in Section 2 of the Sudan Accountability and Divestment Act of 2007) conducting the business can demonstrate—

(1) Are conducted under contract directly and exclusively with the regional government of southern Sudan;

(2) Are conducted pursuant to specific authorization from the Office of Foreign Assets Control in the Department of the Treasury, or are expressly exempted under Federal law from the requirement to be conducted under such authorization;

(3) Consist of providing goods or services to marginalized populations of Sudan;

(4) Consist of providing goods or services to an internationally recognized peacekeeping force or humanitarian organization;

(5) Consist of providing goods or services that are used only to promote health or education; or

(6) Have been voluntarily suspended. "Sensitive technology"—

Sensitive technology—

(1) Means hardware, software, telecommunications equipment, or any other technology that is to be used specifically—

(i) To restrict the free flow of unbiased information in Iran; or

(ii) To disrupt, monitor, or otherwise restrict speech of the people of Iran; and

(2) Does not include information or informational materials the export of which the President does not have the authority to regulate or prohibit pursuant to section 203(b)(3)of the International Emergency Economic Powers Act (50 U.S.C. 1702(b)(3)).
Service-disabled veteran-owned small business (SDVOSB) concern means a small business concern—

(1)

(i) Not less than 51 percent of which is owned and controlled by one or more service-disabled veterans or, in the case of any publicly owned business, not less than 51 percent of the stock of which is owned by one or more service-disabled veterans; and

(ii) The management and daily business operations of which are controlled by one or more service-disabled veterans or, in the case of a service-disabled veteran with permanent and severe disability, the spouse or permanent caregiver of such veteran; or

(2) A small business concern eligible under the SDVOSB Program in accordance with 13 CFR part 128 (see subpart 19.14).

(3) *Service-disabled veteran*, as used in this definition, means a veteran as defined in 38 U.S.C. 101(2), with a disability that is service connected, as defined in 38 U.S.C. 101(16), and who is registered in the Beneficiary Identification and Records Locator Subsystem, or successor system that is maintained by the Department of Veterans Affairs' Veterans Benefits Administration, as a service-disabled veteran. *Service-disabled veteran-owned small business (SDVOSB) concern eligible under the SDVOSB Program* means an SDVOSB concern that—

(1) Effective January 1, 2024, is designated in the System for Award Management (SAM) as certified by the Small Business Administration (SBA) in accordance with 13 CFR 128.300; or

(2) Has represented that it is an SDVOSB concern in SAM and submitted a complete application for certification to SBA on or before December 31, 2023.

Service-disabled veteran-owned small business (SDVOSB) Program means a program that authorizes contracting officers to limit competition, including award on a sole-source basis, to SDVOSB concerns eligible under the SDVOSB Program.

Small business concern—

(1) Means a concern, including its affiliates, that is independently owned and operated, not dominant in its field of operation, and qualified as a small business under the criteria in 13 CFR part 121 and size standards in this solicitation.

(2) *Affiliates*, as used in this definition, means business concerns, one of whom directly or indirectly controls or has the power to control the others, or a third party or parties control or have the power to control the others. In determining whether affiliation exists, consideration is given to all appropriate factors including common ownership, common management, and contractual relationships. SBA determines affiliation based on the factors set forth at 13 CFR 121.103.

Small disadvantaged business concern, consistent with 13 CFR 124.1001, means a small business concern under the size standard applicable to the acquisition, that—

(1) Is at least 51 percent unconditionally and directly owned (as defined at 13 CFR 124.105) by—

(i) One or more socially disadvantaged (as defined at13 CFR 124.103) and economically disadvantaged (as defined at 13 CFR 124.104) individuals who are citizens of the United States; and

(ii) Each individual claiming economic disadvantage has a net worth not exceeding the threshold at 13 CFR 124.104(c)(2) after taking into account the applicable exclusions set forth at 13 CFR124.104(c)(2); and

(2) The management and daily business operations of which are controlled (as defined at 13.CFR 124.106) by individuals, who meet the criteria in paragraphs (1)(i) and (ii) of this definition.

Subsidiary means an entity in which more than 50 percent of the entity is owned—

(1) Directly by a parent corporation; or

(2) Through another subsidiary of a parent corporation

Successor means an entity that has replaced a predecessor by acquiring the assets and carrying out the affairs of the predecessor under a new name (often through acquisition or merger). The term "successor" does not include new offices/divisions of the same company or a company that only changes its name. The extent of the responsibility of the successor for the liabilities of the predecessor may vary, depending on State law and specific circumstances.

Veteran-owned small business concern means a small business concern—

(1) Not less than 51 percent of which is owned and controlled by one or more veterans (as defined at 38 U.S.C. 101(2)) or, in the case of any publicly owned business, not less than 51 percent of the stock of which is owned by one or more veterans; and

(2) The management and daily business operations of which are controlled by one or more veterans.

Women-owned business concern means a concern which is at least 51 percent owned by one or more women; or in the case of any publicly owned business, at least 51 percent of its stock is owned by one or more women; and whose management and daily business operations are controlled by one or more women

Women-owned small business concern means a small business concern—

(1) That is at least 51 percent owned by one or more women; or, in the case of any publicly owned business, at least51 percent of the stock of which is owned by one or more women; and

(2) Whose management and daily business operations are controlled by one or more women.

Women-owned small business (WOSB) concern eligible under the WOSB Program (in accordance with 13 CFR part 127), means a small business concern that is at least 51 percent directly and unconditionally owned by, and the management and daily business operations of which are controlled by, one or more women who are citizens of the United States, and the concern is certified by SBA or an approved third-party certifier in accordance with 13 CFR 127.300.

(b)

(1) *Annual Representations and Certifications*. Any changes provided by the Offeror in paragraph (b)(2) of this provision do not automatically change the representations and certifications in SAM.

(2) The offeror has completed the annual representations and certifications electronically in SAM accessed through http://www.sam.gov. After reviewing SAM information, the Offeror verifies by submission of this offer that the representations and certifications currently posted electronically at FAR 52.212-3, Offeror Representations and Certifications-Commercial Products and Commercial Services, have been entered or updated in the last 12 months, are current, accurate, complete, and applicable to this solicitation (including the business size standard(s) applicable to the NAICS code(s) referenced for this solicitation), at the time this offer is submitted and are incorporated in this offer by reference (see FAR 4.1201), except for paragraphs __.

[*Offeror to identify the applicable paragraphs at (c) through (v) of this provision that the offeror has completed for the purposes of this solicitation only, if any.*

These amended representation(s) and/or certification(s) are also incorporated in this offer and are current, accurate, and complete as of the date of this offer.

Any changes provided by the offeror are applicable to this solicitation only, and do not result in an update to the representations and certifications posted electronically on SAM.]

(c) Offerors must complete the following representations when the resulting contract is for supplies to be delivered or services to be performed in the United States or its outlying areas, or when the contracting officer has applied part 19 in accordance with 19.000(b)(1)(ii). Check all that apply.

(1) *Small business concern*. The offeror represents as part of its offer that—

(i) It □ is, □ is not a small business concern; or

(ii) It □ is, □ is not a small business joint venture that complies with the requirements of 13 CFR 121.103(h) and 13 CFR 125.8(a) and (b). [*The offeror shall enter the name and unique entity identifier of each party to the joint venture:* _____.]

(2) *Veteran-owned small business concern*. [*Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision*.] The offeror represents as part of its offer that it □ is, □ is not a veteran-owned small business concern.

(3) *SDVOSB concern.* [*Complete only if the offeror represented itself as a veteran-owned small business concern in paragraph (c)(2) of this provision.*] The offeror represents that it □ is, □ is not an SDVOSB concern.

(4) *SDVOSB concern joint venture eligible under the SDVOSB Program*. The offeror represents that it □ is, □ is not an SDVOSB joint venture eligible under the SDVOSB Program that complies with the requirements of 13 CFR 128.402. [*Complete only if the offeror represented itself as an SDVOSB concern in paragraph (c)(3) of this provision.*] [*The offeror shall enter the name and unique entity identifier of each party to the joint venture:* _____.]

(5) *Small disadvantaged business concern. [Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.]* The offeror represents that it □ is, □ is not a small disadvantaged business concern as defined in 13 CFR 124.1002.

(6) *Women-owned small business concern*. [*Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision*.] The offeror represents that it □ is, □ is not a women-owned small business concern.

(7) *WOSB joint venture eligible under the WOSB Program.* The offeror represents that it □ is, □ is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c). [*The offeror shall enter the name and unique entity identifier of each party to the joint venture:* _____.]

(8) *Economically disadvantaged women-owned small business (EDWOSB) joint venture.* The offeror represents that it □ is, □ is not a joint venture that complies with the

requirements of 13 CFR 127.506(a) through (c). [*The offeror shall enter the name and unique entity identifier of each party to the joint venture:* _____.]

Note to paragraphs (c)(9) and (10): Complete paragraphs (c)(9) and (10) only if this solicitation is expected to exceed the simplified acquisition threshold.

(9) *Women-owned business concern (other than small business concern*). [*Complete only if the offeror is a women-owned business concern and did not represent itself as a small business concern in paragraph (c)(1) of this provision*.] The offeror represents that it □ is a women-owned business concern.

(10) *Tie bid priority for labor surplus area concerns*. If this is an invitation for bid, small business offerors may identify the labor surplus areas in which costs to be incurred on account of manufacturing or production (by offeror or first-tier subcontractors) amount to more than 50 percent of the contract price:_____

(11) *HUBZone small business concern*. [*Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision*.] The offeror represents, as part of its offer, that–

(i) It □ is, □ is not a HUBZone small business concern listed, on the date of this representation, as having been certified by SBA as a HUBZone small business concern in the Dynamic Small Business Search and SAM, and will attempt to maintain an employment rate of HUBZone residents of 35 percent of its employees during performance of a HUBZone contract (see 13 CFR 126.200(e)(1)); and

(ii) It □ is, □ is not a HUBZone joint venture that complies with the requirements of 13 CFR 126.616(a) through (c). [*The offeror shall enter the name and unique entity identifier of each party to the joint venture:* _____.] Each HUBZone small business concern participating in the HUBZone joint venture shall provide representation of its HUBZone status.

(d) Representations required to implement provisions of Executive Order11246-

(1) Previous contracts and compliance. The offeror represents that-

(i) It □ has, □ has not participated in a previous contract or subcontract subject to the Equal Opportunity clause of this solicitation; and

(ii) It □ has, □ has not filed all required compliance reports.

(2) *Affirmative Action Compliance*. The offeror represents that-

(i) It □ has developed and has on file, □ has not developed and does not have on file, at each establishment, affirmative action programs required by rules and regulations of the Secretary of Labor (41 CFR parts 60-1 and 60-2), or

(ii) It □ has not previously had contracts subject to the written affirmative action programs requirement of the rules and regulations of the Secretary of Labor.

(e) *Certification Regarding Payments to Influence Federal Transactions (31 http://uscode.house.gov/ U.S.C. 1352)*. (Applies only if the contract is expected to exceed $150,000.) By submission of its offer, the offeror certifies to the best of its knowledge and belief that no Federal appropriated funds have been paid or will be paid to any person for influencing or attempting to influence an officer or employee of any agency, a Member of Congress, an officer or employee of Congress or an employee of a Member of Congress on his or her behalf in connection with the award of any resultant contract. If any registrants under the Lobbying Disclosure Act of 1995 have made a lobbying contact on behalf of the offeror with respect to this contract, the offeror shall complete and submit, with its offer, OMB Standard Form LLL, Disclosure of Lobbying Activities, to provide the name of the registrants. The offeror need not report regularly employed officers or employees of the offeror to whom payments of reasonable compensation were made.

(f) *Buy American Certificate*. (Applies only if the clause at Federal Acquisition Regulation (FAR) 52.225-1, Buy American-Supplies, is included in this solicitation.)

(1)

(i) The Offeror certifies that each end product, except those listed in paragraph (f)(2) of this provision, is a domestic end product and that each domestic end product listed in paragraph (f)(3) of this provision contains a critical component.

(ii) The Offeror shall list as foreign end products those end products manufactured in the United States that do not qualify as domestic end products. For those foreign end products that do not consist wholly or predominantly of iron or steel or a combination of both, the Offeror shall also indicate whether these foreign end products exceed 55 percent domestic content, except for those that are COTS items. If the percentage of the domestic content is unknown, select “no”.

(iii) The Offeror shall separately list the line item numbers of domestic end products that contain a critical component (see FAR 25.105).

(iv) The terms “commercially available off-the-shelf (COTS) item,” “critical component,” “domestic end product,” "end product," "foreign end product," and "United States" are defined in the clause of this solicitation entitled "Buy American-Supplies."

(2) Foreign End Products:

LINE ITEM NO.	COUNTRY OF ORIGIN	Exceeds 55% domestic content (yes/no)

(3) Domestic end products containing a critical component:

Line Item No. ___
[*List as necessary*]

(4) The Government will evaluate offers in accordance with the policies and procedures of FAR part 25.

(g)

(1) *Buy American-Free Trade Agreements-Israeli Trade Act Certificate*. (Applies only if the clause at FAR 52.225-3, Buy American-Free Trade Agreements-Israeli Trade Act, is included in this solicitation.)

(i)

(A) The Offeror certifies that each end product, except those listed in paragraph (g)(1)(ii) or (iii) of this provision, is a domestic end product and that each domestic end product listed in paragraph (g)(1)(iv) of this provision contains a critical component.

(B) The terms "Bahraini, Moroccan, Omani, Panamanian, or Peruvian end product," "commercially available off-the-shelf (COTS) item," "critical component," "domestic end product," "end product," "foreign end product," "Free Trade Agreement country," "Free Trade Agreement country end product," "Israeli end product," and "United States" are defined in the clause of this solicitation entitled "Buy American-Free Trade Agreements-Israeli Trade Act."

(ii) The Offeror certifies that the following supplies are Free Trade Agreement country end products (other than Bahraini, Moroccan, Omani, Panamanian, or Peruvian end products) or Israeli end products as defined in the clause of this solicitation entitled "Buy American-Free Trade Agreements-Israeli Trade Act."

Free Trade Agreement Country End Products (Other than Bahraini, Moroccan, Omani, Panamanian, or Peruvian End Products) or *Israeli End Products*:

LINE ITEM NO.	COUNTRY OF ORIGIN

(iii) The Offeror shall list those supplies that are foreign end products (other than those listed in paragraph (g)(1)(ii) of this provision) as defined in the clause of this solicitation entitled "Buy American-Free Trade Agreements-Israeli Trade Act." The Offeror shall list as other foreign end products those end products manufactured in the United States that do not qualify as domestic end products. For those foreign end products that do not consist wholly or predominantly of iron or steel or a combination of both, the Offeror shall also indicate whether these foreign end products exceed 55 percent domestic content, except for those that are COTS items. If the percentage of the domestic content is unknown, select “no”.

Other Foreign End Products:

LINE ITEM NO.	COUNTRY OF ORIGIN	Exceeds 55% domestic content (yes/no)

(iv) The Government will evaluate *offers* in accordance with the policies and procedures of FAR part 25.

(2) *Buy American-Free Trade Agreements-Israeli Trade Act Certificate, Alternate II*.
If Alternate II to the clause at FAR 52.225-3 is included in this solicitation, substitute the following paragraph (g)(1)(ii) for paragraph (g)(1)(ii) of the basic provision:

(g)(1)(ii) The offeror certifies that the following supplies are Israeli end products as defined in the clause of this solicitation entitled "Buy American—Free Trade Agreements—Israeli Trade Act":

Israeli End Products:

LINE ITEM NO.

(3) *Buy American-Free Trade Agreements-Israeli Trade Act Certificate, Alternate III*.
If Alternate III to the clause at 52.225-3 is included in this solicitation, substitute the following paragraphs (g)(1)(i)(B) and (g)(1)(ii) for paragraphs (g)(1)(i)(B) and (g)(1)(ii) of the basic provision:

(g)(1)(i)(B) The terms "Korean end product", "commercially available off-the-shelf (COTS) item," "critical component," "domestic end product," "end product," "foreign end product," "Free Trade Agreement country," "Free Trade Agreement country end product," "Israeli end product," and "United States" are defined in the clause of this solicitation entitled "Buy American—Free Trade Agreements—Israeli Trade Act."

(g)(1)(ii) The Offeror certifies that the following supplies are Korean end products or Israeli end products as defined in the clause of this solicitation entitled "Buy American—Free Trade Agreements—Israeli Trade Act":

Korean End Products or Israeli End Products:

LINE ITEM NO.	COUNTRY OF ORIGIN

(i) The offeror certifies that each end product, except those listed in paragraph (g)(4)(ii) of this provision, is a U.S.-made or designated country end product, as defined in the clause of this solicitation entitled "Trade Agreements."

(ii) The offeror shall list as other end products those end products that are not U.S.-made or designated country end products.

Other End Products:

LINE ITEM NO.	COUNTRY OF ORIGIN

(iii) The Government will evaluate offers in accordance with the policies and procedures of FAR part 25. For line items covered by the WTO GPA, the Government will evaluate offers of U.S.-made or designated country end products without regard to the restrictions of the Buy American statute. The Government will consider for award only offers of U.S.-made or designated country end products unless the Contracting Officer determines that there are no offers for such products or that the offers for such products are insufficient to fulfill the requirements of the solicitation.

(h) *Certification Regarding Responsibility Matters (Executive Order 12689*). (Applies only if the contract value is expected to exceed the simplified acquisition threshold.)
The offeror certifies, to the best of its knowledge and belief, that the offeror and/or any of its principals–

(1) □ Are, □ are not presently debarred, suspended, proposed for debarment, or declared ineligible for the award of contracts by any Federal agency;

(2) □ Have, □ have not, within a three-year period preceding this offer, been convicted of or had a civil judgment rendered against them for: commission of fraud or a criminal offense in connection with obtaining, attempting to obtain, or performing a Federal, state or local government contract or subcontract; violation of Federal or state antitrust statutes relating to the submission of offers; or commission of embezzlement, theft, forgery, bribery, falsification or destruction of records, making false statements, tax evasion, violating Federal criminal tax laws, or receiving stolen property;

(3) □ Are, □ are not presently indicted for, or otherwise criminally or civilly charged by a Government entity with, commission of any of these offenses enumerated in paragraph (h)(2) of this clause; and

(4) □ Have, □ have not, within a three-year period preceding this offer, been notified of any delinquent Federal taxes in an amount that exceeds the threshold at 9.104-5(a)(2) for which the liability remains unsatisfied.

(i) Taxes are considered delinquent if both of the following criteria apply:

(A) *The tax liability is finally determined*. The liability is finally determined if it has been assessed. A liability is not finally determined if there is a pending administrative or judicial challenge. In the case of a judicial challenge to the liability, the liability is not finally determined until all judicial appeal rights have been exhausted.

(B) *The taxpayer is delinquent in making payment*. A taxpayer is delinquent if the taxpayer has failed to pay the tax liability when full payment was due and required. A taxpayer is not delinquent in cases where enforced collection action is precluded.

(ii) *Examples*.

(A) The taxpayer has received a statutory notice of deficiency, under I.R.C. §6212, which entitles the taxpayer to seek Tax Court review of a proposed tax deficiency. This is not a delinquent tax because it is not a final tax liability. Should the taxpayer seek Tax Court review, this will not be a final tax liability until the taxpayer has exercised all judicial appeal rights.

(B) The IRS has filed a notice of Federal tax lien with respect to an assessed tax liability, and the taxpayer has been issued a notice under I.R.C. §6320 entitling the taxpayer to request a hearing with the IRS Office of Appeals contesting the lien filing, and to further appeal to the Tax Court if the IRS determines to sustain the lien filing. In the course of the hearing, the taxpayer is entitled to contest the underlying tax liability because the taxpayer has had no prior opportunity to contest the liability. This is not a delinquent tax because it is not a final tax liability. Should the taxpayer seek tax court review, this will not be a final tax liability until the taxpayer has exercised all judicial appeal rights.

(C) The taxpayer has entered into an installment agreement pursuant to I.R.C. §6159. The taxpayer is making timely payments and is in full compliance with the agreement terms. The taxpayer is not delinquent because the taxpayer is not currently required to make full payment.

(D) The taxpayer has filed for bankruptcy protection. The taxpayer is not delinquent because enforced collection action is stayed under 11 U.S.C. §362 (the Bankruptcy Code).

(i) *Certification Regarding Knowledge of Child Labor for Listed End Products (Executive Order 13126). [The Contracting Officer must list in paragraph (i)(1) any end products being acquired under this solicitation that are included in the List of Products Requiring Contractor Certification as to Forced or Indentured Child Labor, unless excluded at 22.1503(b).]*

(1) *Listed end products.*

LISTED END PRODUCT	LISTED COUNTRY OF ORIGIN

(2) *Certification. [If the Contracting Officer has identified end products and countries of origin in paragraph (i)(1) of this provision, then the offeror must certify to either (i)(2)(i) or (i)(2)(ii) by checking the appropriate block.]*

☐(i) *The offeror will not supply any end product listed in paragraph (i)(1) of this provision that was mined, produced, or manufactured in the corresponding country as listed for that product.*

☐(ii) *The offeror may supply an end product listed in paragraph (i)(1) of this provision that was mined, produced, or manufactured in the corresponding country as listed for that product. The offeror certifies that it has made a good faith effort to determine whether forced or indentured child labor was used to mine, produce, or manufacture any such end product furnished under this contract. On the basis of those efforts, the offeror certifies that it is not aware of any such use of child labor.*

(j) *Place of manufacture.* (Does not apply unless the solicitation is predominantly for the acquisition of manufactured end products.) For statistical purposes only, the offeror shall indicate whether the place of manufacture of the end products it expects to provide in response to this solicitation is predominantly-

(1) □ In the United States (Check this box if the total anticipated price of offered end products manufactured in the United States exceeds the total anticipated price of offered end products manufactured outside the United States); or

(2) □ Outside the United States.

(k) *Certificates regarding exemptions from the application of the Service Contract Labor Standards* (Certification by the offeror as to its compliance with respect to the contract also constitutes its certification as to compliance by its subcontractor if it subcontracts out the exempt services.) [*The contracting officer is to check a box to indicate if paragraph (k)(1) or (k)(2) applies.*]

☐(1) *Maintenance, calibration, or repair of certain equipment as described in FAR* 22.1003-4(c)(1). The offeror □ does □ does not certify that–

(i) The items of equipment to be serviced under this contract are used regularly for other than Governmental purposes and are sold or traded by the offeror (or subcontractor in the case of an exempt subcontract) in substantial quantities to the general public in the course of normal business operations;

(ii) The services will be furnished at prices which are, or are based on, established catalog or market prices (see FAR 22.1003-4(c)(2)(ii)) for the maintenance, calibration, or repair of such equipment; and

(iii) The compensation (wage and fringe benefits) plan for all service employees performing work under the contract will be the same as that used for these employees and equivalent employees servicing the same equipment of commercial customers.

☐(2) *Certain services as described in FAR* 22.1003-4(d)(1). The offeror □ does □ does not certify that-

(i) The services under the contract are offered and sold regularly to non-Governmental customers, and are provided by the offeror (or subcontractor in the case of an exempt subcontract) to the general public in substantial quantities in the course of normal business operations;

(ii) The contract services will be furnished at prices that are, or are based on, established catalog or market prices (see FAR 22.1003-4(d)(2)(iii));

(iii) Each service employee who will perform the services under the contract will spend only a small portion of his or her time (a monthly average of less than 20 percent of the available hours on an annualized basis, or less than 20 percent of available hours during the contract period if the contract period is less than a month) servicing the Government contract; and

(iv) The compensation (wage and fringe benefits) plan for all service employees performing work under the contract is the same as that used for these employees and equivalent employees servicing commercial customers.

(3) If paragraph (k)(1) or (k)(2) of this clause applies–

(i) If the offeror does not certify to the conditions in paragraph (k)(1) or (k)(2) and the Contracting Officer did not attach a Service Contract Labor Standards wage determination to the solicitation, the offeror shall notify the Contracting Officer as soon as possible; and

(ii) The Contracting Officer may not make an award to the offeror if the offeror fails to execute the certification in paragraph (k)(1) or (k)(2) of this clause or to contact the Contracting Officer as required in paragraph (k)(3)(i) of this clause.

(l) *Taxpayer Identification Number (TIN) (* 26 U.S.C. 6109, 31 U.S.C. 7701). (Not applicable if the offeror is required to provide this information to the SAM to be eligible for award.)

(1) All offerors must submit the information required in paragraphs (l)(3) through (l)(5) of this provision to comply with debt collection requirements of 31 U.S.C. 7701(c) and 3325(d), reporting requirements of 26 U.S.C. 6041, 6041A, and 6050M, and implementing regulations issued by the Internal Revenue Service (IRS).

(2) The TIN may be used by the Government to collect and report on any delinquent amounts arising out of the offeror's relationship with the Government (31 U.S.C. 7701(c)(3)). If the resulting contract is subject to the payment reporting requirements described in FAR 4.904, the

TIN provided hereunder may be matched with IRS records to verify the accuracy of the offeror's TIN.

(3) *Taxpayer Identification Number (TIN)*.

☐TIN: _____.

☐TIN has been applied for.

☐TIN is not required because:

☐Offeror is a nonresident alien, foreign corporation, or foreign partnership that does not have income effectively connected with the conduct of a trade or business in the United States and does not have an office or place of business or a fiscal paying agent in the United States;

☐Offeror is an agency or instrumentality of a foreign government;

☐Offeror is an agency or instrumentality of the Federal Government.

(4) *Type of organization*.

☐Sole proprietorship;

☐Partnership;

☐Corporate entity (not tax-exempt);

☐Corporate entity (tax-exempt);

☐Government entity (Federal, State, or local);

☐Foreign government;

☐International organization per 26 CFR1.6049-4;

☐Other _____.

(5) *Common parent*.

☐Offeror is not owned or controlled by a common parent;

☐Name and TIN of common parent:

Name _____.

TIN _____.

(m) *Restricted business operations in Sudan*. By submission of its offer, the offeror certifies that the offeror does not conduct any restricted business operations in Sudan.

(n) Prohibition on Contracting with Inverted Domestic Corporations.

(1) Government agencies are not permitted to use appropriated (or otherwise made available) funds for contracts with either an inverted domestic corporation, or a subsidiary of an inverted domestic corporation, unless the exception at 9.108-2(b) applies or the requirement is waived in accordance with the procedures at 9.108-4.

(2) *Representation*. The Offeror represents that–

(i) It □ is, □ is not an inverted domestic corporation; and

(ii) It □ is, □ is not a subsidiary of an inverted domestic corporation.

(o) Prohibition on contracting with entities engaging in certain activities or transactions relating to Iran.

(1) The offeror shall e-mail questions concerning sensitive technology to the Department of State at CISADA106@state.gov.

(2) *Representation and Certifications*. Unless a waiver is granted or an exception applies as provided in paragraph (o)(3) of this provision, by submission of its offer, the offeror-

(i) Represents, to the best of its knowledge and belief, that the offeror does not export any sensitive technology to the government of Iran or any entities or individuals owned or controlled by, or acting on behalf or at the direction of, the government of Iran;

(ii) Certifies that the offeror, or any person owned or controlled by the offeror, does not engage in any activities for which sanctions may be imposed under section 5 of the Iran Sanctions Act; and

(iii) Certifies that the offeror, and any person owned or controlled by the offeror, does not knowingly engage in any transaction that exceeds the threshold at FAR 25.703-2(a)(2) with Iran's Revolutionary Guard Corps or any of its officials, agents, or affiliates, the property and interests in property of which are blocked pursuant to the International Emergency Economic Powers Act (et seq.) (see OFAC's Specially Designated Nationals and Blocked Persons List at https://www.treasury.gov/resource-center/sanctions/SDN-List/Pages/default.aspx).

(3) The representation and certification requirements of paragraph (o)(2) of this provision do not apply if-

(i) This solicitation includes a trade agreements certification (*e.g.*, 52.212-3(g) or a comparable agency provision); and

(ii) The offeror has certified that all the offered products to be supplied are designated country end products.

(p) *Ownership or Control of Offeror*. (Applies in all solicitations when there is a requirement to be registered in SAM or a requirement to have a unique entity identifier in the solicitation).

(1) The Offeror represents that it □ has or □ does not have an immediate owner. If the Offeror has more than one immediate owner (such as a joint venture), then the Offeror shall respond to paragraph (2) and if applicable, paragraph (3) of this provision for each participant in the joint venture.

(2) If the Offeror indicates "has" in paragraph (p)(1) of this provision, enter the following information:

Immediate owner CAGE code: _____.

Immediate owner legal name: _____.

(Do not use a "doing business as" name)

Is the immediate owner owned or controlled by another entity: □ Yes or □ No.

(3) If the Offeror indicates "yes" in paragraph (p)(2) of this provision, indicating that the immediate owner is owned or controlled by another entity, then enter the following information:

Highest-level owner CAGE code: _____.

Highest-level owner legal name: _____.

(*Do not use a "doing business as" name*)

(q) *Representation by Corporations Regarding Delinquent Tax Liability or a Felony Conviction under any Federal Law.*

(1) As required by sections 744 and 745 of Division E of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235), and similar provisions, if contained in subsequent appropriations acts, The Government will not enter into a contract with any corporation that–

(i) Has any unpaid Federal tax liability that has been assessed, for which all judicial and administrative remedies have been exhausted or have lapsed, and that is not being paid in a timely manner pursuant to an agreement with the authority responsible for collecting the tax liability, where the awarding agency is aware of the unpaid tax liability, unless an agency has

considered suspension or debarment of the corporation and made a determination that suspension or debarment is not necessary to protect the interests of the Government; or

(ii) Was convicted of a felony criminal violation under any Federal law within the preceding 24 months, where the awarding agency is aware of the conviction, unless an agency has considered suspension or debarment of the corporation and made a determination that this action is not necessary to protect the interests of the Government.

(2) The Offeror represents that–

(i) It is □ is not □ a corporation that has any unpaid Federal tax liability that has been assessed, for which all judicial and administrative remedies have been exhausted or have lapsed, and that is not being paid in a timely manner pursuant to an agreement with the authority responsible for collecting the tax liability; and

(ii) It is □ is not □ a corporation that was convicted of a felony criminal violation under a Federal law within the preceding 24 months.

(r) *Predecessor of Offeror.* (Applies in all solicitations that include the provision at 52.204-16, Commercial and Government Entity Code Reporting.)

(1) The Offeror represents that it □ is or □ is not a successor to a predecessor that held a Federal contract or grant within the last three years.

(2) If the Offeror has indicated "is" in paragraph (r)(1) of this provision, enter the following information for all predecessors that held a Federal contract or grant within the last three years (if more than one predecessor, list in reverse chronological order):

Predecessor CAGE code: (or mark "Unknown").

Predecessor legal name:_____.

(*Do not use a "doing business as" name*).

(s) [Reserved].

(t) *Public Disclosure of Greenhouse Gas Emissions and Reduction Goals*. Applies in all solicitations that require offerors to register in SAM (12.301(d)(1)).

(1) This representation shall be completed if the Offeror received $7.5 million or more in contract awards in the prior Federal fiscal year. The representation is optional if the Offeror received less than $7.5 million in Federal contract awards in the prior Federal fiscal year.

(2) Representation. [Offeror to check applicable block(s) in paragraph (t)(2)(i) and (ii)].

(i) The Offeror (itself or through its immediate owner or highest-level

owner) □ does, □ does not publicly disclose greenhouse gas emissions, i.e., makes available on a publicly accessible website the results of a greenhouse gas inventory, performed in accordance with an accounting standard with publicly available and consistently applied criteria, such as the Greenhouse Gas Protocol Corporate Standard.

(ii) The Offeror (itself or through its immediate owner or highest-level owner) □ does, □ does not publicly disclose a quantitative greenhouse gas emissions reduction goal, i.e., make available on a publicly accessible website a target to reduce absolute emissions or emissions intensity by a specific quantity or percentage.

(iii) A publicly accessible website includes the Offeror's own website or a recognized, third-party greenhouse gas emissions reporting program.

(3) If the Offeror checked "does" in paragraphs (t)(2)(i) or (t)(2)(ii) of this provision, respectively, the Offeror shall provide the publicly accessible website(s) where greenhouse gas emissions and/or reduction goals are reported:_____.

(u)

(1) In accordance with section 743 of Division E, Title VII, of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235) and its successor provisions in subsequent appropriations acts (and as extended in continuing resolutions), Government agencies are not permitted to use appropriated (or otherwise made available) funds for contracts with an entity that requires employees or subcontractors of such entity seeking to report waste, fraud, or abuse to sign internal confidentiality agreements or statements prohibiting or otherwise restricting such employees or subcontractors from lawfully reporting such waste, fraud, or abuse to a designated investigative or law enforcement representative of a Federal department or agency authorized to receive such information.

(2) The prohibition in paragraph (u)(1) of this provision does not contravene requirements applicable to Standard Form 312 (Classified Information Nondisclosure Agreement), Form 4414 (Sensitive Compartmented Information Nondisclosure Agreement), or any other form issued by a Federal department or agency governing the nondisclosure of classified information.

(3) *Representation*. By submission of its offer, the Offeror represents that it will not require its employees or subcontractors to sign or comply with internal confidentiality agreements or statements prohibiting or otherwise restricting such employees or subcontractors from lawfully reporting waste, fraud, or abuse related to the performance of a Government contract to a designated investigative or law enforcement representative of a Federal department or agency authorized to receive such information (*e.g.*, agency Office of the Inspector General).
(v) *Covered Telecommunications Equipment or Services-Representation.* Section 889(a)(1)(A) and section 889 (a)(1)(B) of Public Law 115-232.

(1) The Offeror shall review the list of excluded parties in the System for Award Management (SAM) (https://www.sam.gov) for entities excluded from receiving federal awards for "covered telecommunications equipment or services".

(2) The Offeror represents that–

(i) It □ does, □ does not provide covered telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument.

(ii) After conducting a reasonable inquiry for purposes of this representation, that it □ does, □ does not use covered telecommunications equipment or services, or any equipment, system, or service that uses covered telecommunications equipment or services.

End of provision

32. FAR 52.233-2 SERVICE OF PROTEST (SEP 2006)

Protests, as defined in FAR section 33.101 of the Federal Acquisition Regulation, that are filed directly with an agency, and copies of any protests that are filed with the Government Accountability Office (GAO), shall be served on the Contracting Officer at the address below:

U.S. Department of Transportation/OST Office of Senior
Procurement Executive
Attn: Robin Golden, Contracting Officer
1200 New Jersey Avenue
W83-482, Southeast Washington,
DC 20590

Acknowledgement of receipt is confirmed by obtaining a written and dated document from Robin Gates, Contracting Officer.

[End of RFP]

Attachment:
Non-Disclosure Agreement

Attachment 1 - Non-Disclosure Form

CONTRACTOR EMPLOYEE NON-DISCLOSURE AGREEMENT

It is understood that as part of my official duties under the DOT Office of Aviation and Analysis and Schedule Solution Web-Application contract, I may come in contact with Government procurement sensitive information or proprietary business information from other contractors (e.g., cost data). I, as an official Government contractor employee, certify that I will not disclose, publish, divulge, release, or make known, in any manner or to any extent, to any individual other than an appropriate or authorized Government employee, the content of any sensitive information provided during the course of my employment. I understand that for the purpose of this agreement, sensitive information is to include procurement data, contract information, plans, strategies or other information not of a publicly released and available nature through appropriate sources.

I further certify that I will use proprietary business information only for official purposes in the performance of the DOT Aviation and Analysis and Schedule Solution Web-Application contract and will disclose such information only to those individuals who have a specific need to know in performance of official Government duties. I specifically will not disclose any such information to employees of my company or any other contractor employees or anyone who have not signed an applicable non-disclosure agreement. I will take all reasonable precautions to protect and to prevent the unauthorized disclosure and use of such information.

I hereby certify that I have read the non-disclosure agreement described above and I am familiar with the directives and policies governing the disclosure of sensitive information. I will fully and completely observe these directives and will not disclose such information to any unauthorized person, or use any information obtained for private use or gain at any time.

_____ _____ _____

NAME (Please Print) SIGNATURE DATE

_____

ORGANIZATION/AFFILIATION